



Image



Lobby introduces lactation rooms in schools to support teachers

NEWS / FRI, 02/28/2025 - 13:53

Sitna Omar-KNA

The Kenya Women Teachers Association (KEWOTA) is setting up lactation rooms in schools to help teachers effectively balance their professional duties and motherhood.

These facilities are intended to foster a more inclusive and supportive atmosphere for staff, resulting in enhanced job satisfaction and performance.

The association believes that by establishing lactation rooms, teachers can conduct classes without the stress of being away from their infants, as they can easily breastfeed during breaks.

Mercy Odhiambo, the coordinator of KEWOTA's Homa Bay branch, highlighted the advantages of having lactation facilities for the teachers and their babies adding that having a nearby facility saves them time, reducing the need to rush home to breastfeed.

“It helps improve the mental well-being of teachers, who may feel anxious about being away from their young children,” she noted.

She pointed out that separation from their children can cause mental distress for women during working hours, hampering their performance.

Odhiambo made these remarks during the official opening of a lactation facility at Ndhiwa Comprehensive School, a programme funded by KEWOTA.

“The association aims to implement the programme in as many schools as possible,” she said, and encouraged school heads in other areas to provide them with spaces to establish similar facilities.

KEWOTA's Marketing Manager, Daniel Oswago, stressed that these lactation rooms serve as safe spaces where teachers can comfortably bond with their babies without worry.

He added that the facility allows caregivers to bring children to school, so that teachers can breastfeed after classes or during their free time.

“This arrangement helps to enhance school performance as teachers will feel secure about their children's well-being, allowing them to focus fully on their work,” Oswago noted.

Ndhiwa Comprehensive School Deputy Headteacher, Nedy Dulo, mentioned that the usual maternity leave for teachers is four months, during which their babies are often still reliant on breast milk.

She said the lactation room would help reduce late arrivals and absenteeism among teachers who are inclined to care for their babies at home, resulting in such situations.

“We have allowed our female teachers to bring their babies to school to address these challenges,” she said.

The teachers expressed their gratitude for KEWOTA, noting that they often face difficulties leaving their young children at home while at work, making the facility a timely and valuable resource.

Pamela Otieno, a junior secondary school teacher, shared her experience of having to leave school to care for her 18-month-old son, who becomes very distressed when she is away.

She said that the facility is crucial for her and other teachers in similar situations.

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The implications of university admission policies on females' access to higher education: a case study of Moi University

Gichogo, Florence Wairimu

URI: <http://ir.mu.ac.ke:8080/jspui/handle/123456789/7162>

Date: 2022

Abstract:

The issue of females' under-representation in enrolment in higher education over the years has elicited concern from many quarters and many countries have put in place measures to address the issue. In Kenya, admission to public universities is handled by the Kenya Universities and Colleges Central Placement Service (KUCCPS) and previously by the Joint Admissions Board (JAB). The purpose of this study was to assess the implications of the university admission policies on females' access to higher education, using Moi University as a case study. The study was guided by the following specific objectives; to examine specific university admission policies put in place by the admissions body, to establish the level at which the university entry cut off point was set between 1993 and 2010, to establish the extent to which females have been represented in the admissions to Moi University, and also to establish undergraduate students' perceptions of affirmative actions aimed at enhancing females access to university education. The study adopted a mixed method survey design, as it used both quantitative and qualitative data. This study was based on John Rawls' theory of justice as fairness. The study's target population was the undergraduate students registered in the 2007/2008 academic year and the officers in the university admission's secretariat and those in Moi University's admissions' registry. The sample comprised 467 students being 5.9% of the 7,924 undergraduate students the study employed proportionate stratified random sampling technique and purposive sampling techniques. Qualitative data was collected using the questionnaire technique and Focused Group Discussions while quantitative data was generated through document analysis. Quantitative data was analyzed using descriptive statistical techniques such as frequencies, percentages, the range and standard deviation, and The Pearson's Product moment correlation was used to analyze the hypothesized relationships. Qualitative data was categorized and organized into themes and narratives. According to the findings of the study, there was a general admissions criterion each year and there were also those targeting different categories of students such as females and this entailed lowering the cut-off point. The gender affirmative action criteria of admission was effected variously over the years under study with the lowest cut off point for females being 61 points in the years 2000/2001, 2008/2009 and 2009/2010 and the highest at 68 points in the years 1996/1997 to 1999/2000. In the period under study, the females cut off point was lower than that of males by between 1-3 points with the year 2005/2006 reflecting the highest range (3 points) as the cut-off point for females was 64 points against that of males at 67 points. Females representation in admissions varied from year to year with the highest representation at 43.97 % in the year 2009/2010 and the lowest being 30.59% in the year 1993/94. The respondents were to some extent in support of the affirmative gender criterion of admissions with 68.1% of the respondents indicating support for lowering the cut off points for females. On respondents' perceptions on measures aimed at enhancing females' access to higher education, at - 0.837 confidence level, there was no relationship between gender of the respondent and perceptions on lowering of university entry points for females while Sixty-three-point four (63.4) percent of the respondents indicated that it would be inappropriate to reserve quotas for females in university admissions. The study concluded that in spite of the affirmative actions, the female gender continued to be disadvantaged in terms of enrolment. The study recommended a re-examination of the measures put in place to enhance females' access to university education. The study is significant in that its findings are useful in informing further policy decisions on enhancing females' access to higher education.

Strengthening the Democratic Participation of Women Candidates in Kenya's Elections

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October 27, 2022 , 4:23 pm , Blogs

Introduction

The Universal Declaration of Human Rights (UDHR) 1948 provides that everyone has the right to take part in the government of his/her country, directly or through freely chosen representatives. The International Convention on Civil and Political Rights (ICCPR) further acknowledges this right and opportunity for citizens to take part in the conduct of public affairs, directly or through freely chosen representatives to vote and be elected in a democratic election and the universal and equal suffrage through a secret ballot. The African Union's African Charter on Human and Peoples' Rights acknowledges the importance of participation in public affairs as an essential element of democracy. The African Charter on Democracy, Elections, and Governance also requires the African Union member states to acknowledge people's participation as an inalienable right of the people of the continent.

Among the most important principles in the governance of public affairs that has been a subject of debate over the years in Kenya is the quest to promote participatory democracy and make the participation of women a critical aspect of the system of governance and decision-making. The protracted struggles for democratic reforms in Kenya led to the promulgation of the Kenyan Constitution 2010, with Article 10 enshrining democracy and participation of the citizens among the values and principles of the system of governance. The fundamental issues surrounding the contribution of women in the political processes, and the gains and challenges that still impede the right and position of women in the process are highlighted in this discussion.

The 2022 Kenyan polls were the third elections to be conducted after comprehensive changes brought by the Constitution 2010. The first time a woman was elected to Kenya's Parliament was in 1969, and this has been increasing over time but still, the political landscape has been predominantly male. The legal and institutional reforms have enhanced the environment for participation of women in the political discourse and governance in Kenya.

However, the Constitution only sets out a mechanism for meeting the two-thirds gender rule at the county government level and provided no such procedure for the National Assembly and the Senate. It required Parliament to enact the necessary legislation to achieve this quota within five years, but numerous attempts to pass such legislation have failed. Consequently, in the 2022 polls, the number of women elected still falls below the constitutional threshold as 30 women were elected to Parliament, representing 8.6% women representation in Parliament. This is attributed to not just absence of legislative framework but also cultural, financial, and political barriers and violence that still threatens the aspiration of women's participation in the political space.

Policy Issue

The Constitution of Kenya 2010 has laid a strong foundation for the principles of gender equity and equality in the country's political and governance structures. The Constitution encompasses provisions outlining the need to adhere to gender parity by not having more than a third of elected leaders belonging to the same gender. In addition to the constitutional provision, there have been legislations, regulations, judicial decisions, and international treaties that have contributed immensely to the gains contained in the Constitution of Kenya 2010.

Despite this progress in legal, policy, and institutional reforms, the number of women participating in the electoral process falls short of the aspirations envisaged. For instance, out of the total of over 16,000 gazetted aspirants by the Independent Electoral and Boundaries Commission (IEBC), female candidates were less than 2,000, representing 12.8%. Out of the over 22 million voters, about 49.12 per cent were female voters, which is still under-representation of women in the political environment despite the little progress made. In the 2022 general elections held on 9th August 2022, women formed the minority, comprising 24.8% of the elected leaders at the National level.

The Constitution of Kenya 2010 created 47 women representative positions as an affirmative action to increase the participation of women in political decisions, and build the profile of women in the national political arena. Additional nomination positions in the National Assembly and the Senate have been set aside for women primarily to boost the number of women and compensate for the historical marginalization of women in politics. Unfortunately, those who are elected in these positions are becoming permanent occupants of this position as most of the women representative are running for their third term contrary to the spirit of the constitution. This ought to be a one-time position as the representatives are now ready and able to run for substantive constituency election by virtue of being visible and endowed with resources to garner the requisite votes in a competitive process.

Current Interventions

When women assume more public roles, they become influential and visible, and this is likely to increase their participation in a public process. Kenya as a democratic country has made some strides in ensuring that women are part of the political process. Amendments to the Elections Act and the Political Parties Act (PPA) in 2022 have improved the regulatory environment but this is still inadequate, and the interventions lack meaningful incentives and enforcement mechanisms. Compliance among political parties and Parliament is still low.

In the 2022 polls, all the political parties put in place mechanisms to bolster the participation of women in the election. The nomination fee was lowered for women candidates relative to their male counterparts. This is a commendable initiative from the political parties. In addition, the main political parties have given very crucial party positions to women, which is critical in the decision-making within the party mechanism. For instance, the United Democratic Alliance (UDA), the leading political party, had four (4) out of five (5) women candidates contesting for the position of county governor (the second tier of leadership cadre) emerging successful while Orange Democratic Party (ODM) and Wiper Democratic Movement-Kenya (WDM-K) had a woman governor each in Siaya and Machakos counties, respectively. These are the major parties that participated in the election, demonstrating that political parties have a role to play in this equation. The Kenya Women Parliamentary Association (KEWOPA), which is made up of women parliamentarians, have leadership and mentorship training for women who are aspiring to be leaders. The programme helps in encouraging women to participate in elective posts in general elections.

Gaps and Lessons

Kenya is trailing her peers within the East African Community (EAC) in women's political representation, with 21.4 per cent women members of Parliament. According to the Perline monthly report in reference to the 2017 polls, Rwandese election of 2018 had 49 out of 80 seats in the Lower House going to women, representing 61.3%. In the Ethiopian elections for 2021, with a total of 470 seats, 195 seats went to women, representing 41.5% while Uganda during the election of 2021 women garnered 188 out of 556 seats in Parliament, representing 33.8%. This is largely attributed to many challenges women face in the democratic space. Women are restricted in leadership and political participation due to structural barriers through discriminatory laws, attitudes and gender stereotypes, low level of education, lack of access to health care, and the disproportionate effect of poverty on women and capacity gap as women are less likely than men to have education, contacts and resources needed to become effective leaders. It is estimated that out of the 7.8 million poor people living below the poverty line of US\$ 1.90 per day, 4.1 million are women and 3.7 million are men, indicating a gender gap in poverty in the country, according to the Kenya Integrated Household Budget Survey (KIHBS) 2015/16. In addition, the male to female ratio stands at 0.97 and 0.95 in primary and secondary school, respectively.

The United Nations stresses the need for countries to promote women's participation in democracy and be part of decision-making. Democracy acts as an incubator for gender equality and is interlinked and, therefore, it is important to breach the gap in the democratic participation of women in elections.

Way Forward and Recommendations

For true gender equity and equality to become a reality in Kenya, as elsewhere, decades will be required to alter entrenched attitudes and customs. Nonetheless, much can be done in the short-term to meet the provisions of the Constitution and ensure that women are fairly represented in the political institutions. For Kenya to attain the aspirations envisaged in the Constitution of Kenya 2010, concerted effort is necessary that include.

- The Office of Registrar of Political Parties (ORPP) may consider establishment of policy to ensure that a proportion of public funds set aside for political parties are used to support women candidates in the electoral process.
- Civil society efforts to create an independent fund, such as those of Kenya Women Holding, are equally important as they will help support capacity building in women, learning how election processes work, and about campaign methods and financing. Civil society organizations (CSOs) to train new women candidates and provide mentorship, while also working with elected leaders to ensure that they are effective politicians. CSOs work across all sectors – such as media, conflict, political parties, and governance – and together they can build support for more women in politics.

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Teachers Service Commission adds paternity, maternity leave offs

Books

By Jacinta Mutura

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Teachers Service Commission CEO Dr Nancy Macharia addressing the press at a past event [Samson Wire. Standard.]

Female teachers can now apply for four-month maternity leave. This after the Teachers Service

Commission (TSC) increased the maternity and paternity leaves with full pay.

Female teachers will get four months' maternity leave while male ones will be entitled to 21 days' paternity leave.

The development is in partial fulfillment of the Collective Bargaining Agreement (2021-2025) package, which has specific provisions for maternity, paternity and pre-adoptive leave.

“Female employees shall be entitled to 120 calendar days with full pay, with effect from the date of delivery, and the teacher shall not forfeit her annual leave on account of having taken maternity leave,” said the commission's Executive Officer Nancy Macharia in a statement.

Male teachers will be eligible for paternity leave of 21 calendar days, with full pay once a year within the duration of the spouse's maternity leave, while teachers seeking pre-adoptive time are now eligible for 45 calendar days, with full pay from the date of adoption.

In the new CBA, which took effect from July 2021, teachers successfully bargained for increased maternity and paternity leave days from the previous 90 days and 14 days for men and women, respectively, to the now implemented 120 days and 21 days.

The agreement was signed between TSC and teachers' unions.

The CEO said the commission had successfully migrated services related to leave application for teachers to an online platform, as part of the 2019-2023 Strategic Plan.

“The Human Resource Management Information System (HRMIS) Leave Module for teachers was effected from November 1, 2021, and subsequently the leave application process has been executed seamlessly,” read the statement.

Related Topics

Teachers Service Commission TSC

Maternity Leave Paternity Leave

S H A R E T H I S A R T I C L E O N
S O C I A L M E D I A





REPUBLIC OF KENYA
MINISTRY OF GENDER, CULTURE AND CHILDREN SERVICES
STATE DEPARTMENT FOR GENDER AFFAIRS AND AFFIRMATIVE ACTION

REPORT
ON
THE STATUS OF IMPLEMENTATION OF THE NOT MORE
THAN TWO-THIRDS GENDER PRINCIPLE IN MDACS FOR
THE 2024/2025 FINANCIAL YEAR

JUNE, 2025

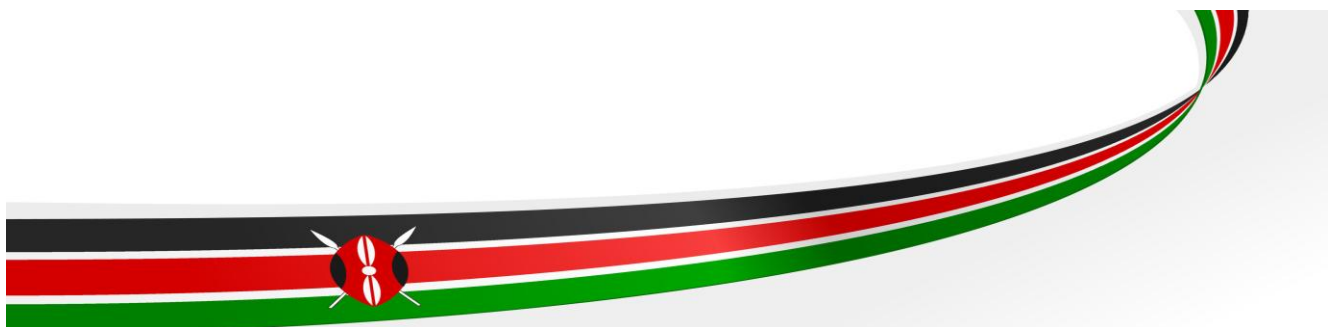


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FOREWORD

The Government of Kenya remains steadfast in its commitment to the realization of gender equality and the empowerment of all citizens, as enshrined in our Constitution 2010 and articulated in national development blueprints including the Fourth Medium Term Plan (MTP IV) of Kenya's Vision 2030 and the Bottom-Up Economic Transformation Agenda (BETA). The Constitutional not more than two-thirds gender principle stands as a cornerstone of our national resolve to create a more inclusive and diverse governance structure that reflects the composition of the population and ensures that the perspectives, experiences and interests of both women and men are considered in the formulation and implementation of laws and policies.

This report on the Status of Implementation of the Not More Than Two-Thirds Gender Principle in Ministries, Departments, Agencies, and Counties (MDACs) for the 2024/2025 financial year provides a timely and comprehensive assessment of progress, challenges and opportunities in advancing gender parity in the public service. The analysis reveals both the milestones achieved and the barriers that continue to impede full compliance with this Constitutional imperative.

The assessment serves as both a call to action and a roadmap for accelerating the realization of the two-thirds gender principle, offering evidence-based recommendations to guide policymakers, public sector leaders and development partners in designing and implementing targeted interventions to bridge the remaining gaps. As we move forward, I urge all stakeholders to intensify their efforts, foster collaboration and champion the values of equality and inclusion. Let us seize this moment to translate our Constitutional promise into tangible outcomes for all Kenyans.

On behalf of the Government of Kenya and the State Department for Gender Affairs and Affirmative Action, I commend all those who contributed to this important analysis. Together, let us reaffirm our collective commitment to building a just, inclusive and prosperous nation where every Kenyan has an equal opportunity to lead and serve.



Anne N. Wang'ombe

Principal Secretary

State Department for Gender Affairs and Affirmative Action

PREFACE AND ACKNOWLEDGEMENT

This report on the Status of Implementation of the Not More Than Two-Thirds Gender Principle in MDACs for the 2024/2025 Financial Year is the result of the collective efforts, collaboration and commitment of numerous institutions and individuals dedicated to advancing gender equality and inclusive governance in Kenya. This analysis was made possible through the active participation of MDACs, whose timely responses, candid insights, and provision of critical data have ensured the credibility and comprehensiveness of the findings.

We are deeply appreciative of the technical and financial support provided by UN Women, whose partnership continues to be invaluable in the promotion of gender equality and women's empowerment in Kenya's public sector. The unwavering commitment to this cause has greatly enriched the quality and impact of this analysis.

Special thanks go to the County Assemblies Forum (CAF) for their collaboration and for facilitating access to county-level data and perspectives, which have been essential in capturing the realities of gender representation at the devolved level.

Finally, we also extend our heartfelt appreciation to the leadership and staff of the State Department for Gender Affairs and Affirmative Action (SDGAAA) for their strategic guidance, stewardship and unwavering support throughout the development of this report. Your vision and leadership have been pivotal in driving the national agenda towards the realization of the not more than two-thirds gender principle.

Thank you all for your dedication and partnership.



Jackline Nekesa Makokha
Director
Gender Balance and Equality Directorate

ACRONYMS AND ABBREVIATIONS

ACHPR	African Charter on Human and Peoples' Rights
BETA	Bottom-Up Economic Transformation Agenda
CAF	County Assemblies Forum
CAJ	Commission on Administrative Justice
CEDAW	Convention on the Elimination of All Forms of Discrimination Against Women
CoG	Council of Governors
COK	Constitution of Kenya
CS	Cabinet Secretary
EAC	East African Community
GRB	Gender Responsive Budgeting
IEBC	Independent Electoral and Boundaries Commission
MDA	Ministry, Department, Agency
MDACs	Ministries, Departments, Agencies and Counties
MSWG	Multi-Sectoral Working Group on the Realization of the Not More Than Two-Thirds Gender Principle
MTP IV	Fourth Medium Term Plan
NADCO	National Dialogue Committee
NGEC	National Gender and Equality Commission
PWD	Persons with Disabilities
SDG	Sustainable Development Goal
SDGAAA	State Department for Gender Affairs and Affirmative Action
UN Women	United Nations Entity for Gender Equality and the Empowerment of Women
UN	United Nations
VAWG	Violence Against Women and Girls

DEFINITION OF TERMS

Affirmative Action: any measure designed to overcome or ameliorate an inequity or the systemic denial or infringement of a right or fundamental freedom.

Appointive Positions: Leadership or decision-making roles within public service or statutory bodies that are filled through appointment by an authorized body or official, rather than by public election.

Disability Responsive: Policies, practices, or programs that are intentionally designed to recognize, accommodate, and address the specific needs, rights, and barriers faced by persons with disabilities, ensuring their effective participation and inclusion in all aspects of public life.

Elective Positions: Public offices filled through a competitive electoral process, where candidates are chosen by eligible voters; such as Members of Parliament, Senators, Governors, and Members of County Assemblies.

Gender: The socially constructed roles, behaviors, activities and attributes that a given society considers appropriate for women, men, girls and boys. Gender is distinct from biological sex and can vary across cultures and over time.

Gender Equality: The state in which men and women have equal rights, responsibilities and opportunities; and where access to resources and decision-making is not determined by gender.

Gender Mainstreaming: The systematic process of assessing and integrating gender perspectives and considerations into all policies, programs, and institutional practices, to ensure that both women and men benefit equally and that inequality is not perpetuated.

Gender Principle (Two-Thirds Gender Principle): A Constitutional requirement in Kenya (Articles 27(8) and 81(b)) that no more than two-thirds of the members of any elective or appointive public body shall be of the same gender.

Gender Responsive: An approach, policy or program that proactively identifies and addresses the different needs, experiences, and challenges of women and men, ensuring equitable outcomes and opportunities for all.

Gender Responsive Budgeting (GRB): A strategy for planning, approving, executing, and monitoring public budgets to ensure that resource allocation and spending advance gender equality and respond to the specific needs of all genders.

Gender Sensitive: Being aware of and acknowledging gender differences, roles and inequalities in the design, implementation and evaluation of policies, programs and practices, with the aim of avoiding bias and promoting fairness.

Marginalized Groups: A group of people who, because of laws or practices were or are disadvantaged by discrimination on one or more grounds under Article 27(4) of the Constitution of Kenya, 2010 including sex, disability, age, or ethnic or social origin.

CHAPTER ONE

INTRODUCTION

1.1 Background

The not more than two-thirds gender principle is the cornerstone of Kenya's Constitutional commitment to gender equality and inclusive governance. Enshrined in Articles 27(6) and 27(8) of the Constitution, this principle mandates that no more than two-thirds of the members of any elective or appointive public body shall be of the same gender. It compels the State to adopt legislative, policy, and affirmative action measures to address historical marginalization and promote balanced representation. This requirement is not merely aspirational, it is a Constitutional imperative designed to ensure that the perspectives, experiences, and interests of both men and women are fully integrated into the formulation and implementation of laws and policies, thus fostering a governance structure that mirrors the diversity of Kenya's population.

Despite this robust legal framework, full realization of the not more than two-thirds gender principle remains elusive. Progress has been marked by both significant milestones and persistent challenges, including inadequate budget allocations for gender mainstreaming, limited technical capacity, and entrenched socio-cultural attitudes that hinder effective implementation.

1.2 Justification for the Analysis

Persistent challenges continue to hinder progress towards gender equality in Kenya's public sector. Many institutions allocate less than the recommended 1.5% of their annual budgets to gender mainstreaming, and there is a widespread lack of technical capacity to implement effective gender and inclusion programs (National Gender and Equality Commission, 2023). Patriarchal institutional cultures and the perception of gender issues as peripheral further limit progress, while negative attitudes toward recruiting persons with disabilities and marginalized groups persist.

In enhancing the realization of the two thirds gender principle in MDAs, the SDGAAA in its 2023-2027 Strategic Plan, undertook to monitor implementation of the two-thirds gender principle in elective and appointive positions across sectors on an annual basis.

In evaluating the MTP III, it was recommended that the Government fast-track the enactment of the two-thirds gender bill to achieve the Constitutional threshold. Towards this, the MTP IV prioritizes development of a framework for the implementation of the two-thirds gender principle in elective positions and a legal framework to operationalize the two-thirds gender principle; The plan thus prioritized training MDACs on gender-responsive budgeting; analyzing levels of compliance of MDACs on gender mainstreaming policies; and conducting audits on inclusion of women in leadership.

It is on this basis that the SDGAAA has undertaken the analysis, in order to provide a basis for the fast-tracking of implementation of the two-thirds gender principle in elective and appointive positions.

1.3 Objectives of the Analysis

The overall objective of the analysis is to assess the status of implementation of the not more than two-thirds gender principle in Ministries, Departments, Agencies and Counties (MDACs) in the 2024/2025 financial year.

1.3.1 Specific Objectives

- To establish the current status of implementation of the two-thirds gender principle in MDACs in terms of HR practices and level of awareness of related legal frameworks.
- To identify gaps in implementation of the two-thirds gender principle in elective and appointive positions.
- To identify actionable strategies for enhancing implementation of the two-thirds gender principle.

1.4 Scope of the Analysis

This report presents an analysis of the implementation status of the not more than two-thirds gender principle across selected Ministries, Departments, and Agencies (MDAs) in Kenya for the 2024/2025 financial year. The scope of the analysis covers national public sector institutions, including ministries, state departments, state corporations, semi-autonomous government agencies, and other statutory bodies.

A standardized questionnaire was disseminated to 59 MDAs to gather comprehensive data on gender representation in staff establishment, senior management, and board composition, as well as on awareness levels, existing policies, and challenges in implementing the gender principle. Of the 59 institutions contacted, 29 provided complete responses, representing a response rate of 49.2%. This response rate provided a foundation for this report's quantitative and qualitative analysis.

1.5 Methodology

1.5.1 Data Collection Process

The primary data collection tool used in this assessment was a standardized questionnaire specifically designed to gather comprehensive and comparable data across institutions. The questionnaire was structured to collect both quantitative and qualitative data, focusing on the following thematic areas:

- General Information
- Staff Establishment
- Awareness and Legal Framework
- Challenges and Recommendations

The questionnaire was sent electronically to 59 Ministries, Departments, and Agencies (MDAs), with clear instructions for completing and submitting the questionnaire within a specified timeframe. (see *Annex 1 for the questionnaire*).

For data relating to elective positions, the assessment relied on secondary data sourced from the County Assemblies (CA) 750 Strategy, thereby ensuring that both appointive and elective dimensions of the not more than two-thirds gender principle are captured and providing a comprehensive perspective on the status of implementation across the public sector.

1.5.2 Data Analysis Methods

The analysis combined quantitative assessment of questionnaire responses with qualitative thematic analysis of workshop discussions and stakeholder inputs. Upon receipt of the completed questionnaires, responses were consolidated and analyzed using Microsoft Excel. Descriptive statistics were used to summarize gender distribution and compliance levels. The analysis also included narrative synthesis of qualitative responses on awareness, policy frameworks, strategies, and challenges.

To enrich the analysis and ensure stakeholder validation, a three-day workshop was convened with representatives from the County Assemblies Forum and UN Women. During the workshop, data was jointly reviewed, and consensus was built on key findings and recommendations to be included in the report.

CHAPTER TWO

SITUATIONAL ANALYSIS

2.1 Overview

This chapter provides a comprehensive overview of the current landscape regarding the implementation of the not more than two-thirds gender principle within Ministries, Departments, Agencies, and Commissions (MDACs) in Kenya. It examines both the measures that have been instituted to promote the realization of this constitutional requirement and the actual status of compliance across institutions.

2.2 Measures in place to Promote realization of two-thirds gender principle in MDACs

2.1.1 Legal and policy Measures

Kenya has put in place a comprehensive legal and policy framework to advance gender equality and ensure the implementation of the two-thirds gender principle in both elective and appointive bodies. These measures operate at international, regional, and national levels, reflecting Kenya's multi-level approach to promoting women's participation in leadership and decision-making.

1. International Commitments

Kenya has signed and ratified several important international instruments that obligate the state to eliminate gender discrimination and promote equal participation. These include:

- **Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW, 1979):** Kenya ratified CEDAW, committing to eliminate all forms of gender discrimination.
- **Universal Declaration of Human Rights:** Guarantees the right to equal participation for all, regardless of gender.

- **International Covenant on Civil and Political Rights:** Supports equal involvement of men and women in governance and public affairs.
- **Sustainable Development Goal 5 (SDG 5):** Calls for gender equality and increased participation of women in decision-making.
- **Beijing Platform for Action (1995):** Provides a global strategy for advancing women's rights.

2. Regional Commitments

Regionally, Kenya is also part of key African and regional agreements that reinforce the two-thirds gender principle by promoting women's participation in leadership and decision-making:

- **African Charter on Human and Peoples' Rights (Maputo Protocol, 2003):** Article 9 specifically promotes women's right to participate in politics and decision-making.
- **African Union Gender Policy:** Urges member states to ensure women's representation and gender parity in leadership.
- **East African Community Gender Policy:** Supports gender mainstreaming and women's inclusion in leadership positions among member states.
- **AU Agenda 2063:** Emphasizes achieving full gender equality and women's empowerment across Africa.

3. National Legal and Policy Framework

At the national level, Kenya has put in place a robust framework to promote gender equality and implement the two-thirds gender principle. The following legal and policy measures are in place:

- **The Constitution of Kenya (2010):** Articles 27(8) and 81(b) provide for the principle of not more than two-thirds representation of one gender in elective and appointive bodies.
- **Elections Act (2011):** Requires political parties to comply with the two-thirds gender rule in their party lists.

- **Political Parties Act (2011):** Requires political parties to promote gender equality and comply with the two-thirds rule to access public funding.
- **County Governments Act (2012):** Ensures that county executive committees follow the two-thirds gender rule.
- **National Gender and Equality Commission Act (2011):** Created a commission to monitor and promote gender equality.
- **Employment Act (2007):** Prohibits discrimination based on sex and supports affirmative action.
- **National Policy on Gender and Development (2019):** Provides a framework for gender equality and women's empowerment.
- **Vision 2030:** Kenya's development plan highlights women's empowerment and gender equality in leadership.
- **Bottom-Up Economic Transformation Agenda (BETA):** Includes specific measures to increase women's participation in leadership.
- The **Persons with Disabilities Act No. 4 of 2025:** Mandates that every employer with at least twenty employees must reserve a minimum of five percent of direct employment opportunities for persons with disabilities, thereby advancing equitable access to employment. Additionally, the Act extends the retirement age for persons with disabilities by five years beyond the standard mandatory retirement age, promoting greater workplace inclusivity.

2.1.2 Administrative Measures

The Government of Kenya has implemented various administrative measures to promote the realization of the not more than two-thirds gender principle. These measures reflect the government's and partners' commitment to creating an enabling environment for gender equality in leadership and decision-making. They include:

i) **Multi-Sectoral Working Group on the Realization of the Not More Than two-thirds gender principle (MSWG):**

The MSWG was established by the Cabinet Secretary responsible for Gender in August 2023 and was tasked to develop and recommend a framework for the implementation of the not more than two-thirds gender principle as captured in Articles 27(6) and (7) and 81(b) of the Constitution of Kenya 2010. In February 2024, the Working Group, following comprehensive consultations, submitted to Parliament legislative proposals, policy interventions and administrative actions to actualize and accelerate the realization of the not more than two-thirds gender principle.

ii) **National Dialogue Committee (NADCO):**

The National Dialogue Committee (NADCO), a bipartisan Parliamentary process, was initiated in May 2023 to facilitate dialogue, build consensus and recommend appropriate constitutional, legal and policy reforms on issues of concern to the people of Kenya. The committee identified key issues of concern from Kenyans that included the outstanding implementation of the gender principle. NADCO in its Final Report recommended that the MSWG finalize its work and recommend a framework for implementation of the Gender Principle to Parliament.

iii) **Intergovernmental Consultation Framework for Gender Sector (2019):**

The Framework establishes mechanisms for collaboration and consultation between national and county governments on gender equality and women's empowerment (GEWE), including coordinating policies, sharing data, and addressing concurrent functions. It creates several coordination bodies such as the National Gender Sector Working Group, Thematic Sector Working Groups, County Gender Working Groups, and the Development Partners Gender Group (DPGG). Notably, the Women in Leadership and Decision-making Sub-Committee, one of the 6 thematic sector working groups, brings together women

leaders from both state and non-state actors to strengthen women's participation in all spheres of leadership in pursuit of gender equality.

iv) **Gender Mainstreaming Performance Targets:**

To institutionalize gender equality, the government introduced gender mainstreaming performance targets for Ministries, Departments, and Agencies (MDAs). These targets are incorporated into annual performance contracts and are monitored through gender audits and progress reports. MDAs are evaluated on their ability to integrate gender perspectives into policies, programs, and staffing decisions. This performance-based approach has improved accountability and incentivized public institutions to prioritize gender equality. The regular assessment of gender mainstreaming indicators has contributed to increased awareness and practical steps toward achieving the two-thirds gender principle in public service appointments.

v) **Women in Leadership and Decision Making Strategy (2016):**

This national strategy was developed to specifically address the underrepresentation of women in leadership roles across political, economic, and social sectors. It outlines targeted interventions such as leadership training, mentorship programs, advocacy campaigns, and affirmative action measures. The strategy also promotes the creation of enabling environments that reduce barriers to women's participation, including addressing cultural norms and providing support for work-life balance. Currently under review, the strategy's update aims to incorporate lessons learned, emerging challenges, and new opportunities to accelerate women's leadership and ensure alignment with the constitutional two-thirds gender requirement.

vi) **G7 Strategy:**

Launched in March 2024, the G7 Strategy is an innovative initiative by Kenya's seven female governors to empower women leaders in devolved government by providing tools, resources, mentorship, and capacity-building to overcome leadership challenges and promote gender equality at the county level. The strategy enhances good governance, supports socio-economic development, and fosters collaboration among government, civil society, and the private sector, with the ambitious goal of increasing the number of female governors from seven to sixteen by the 2027 elections. Strongly endorsed by President William Ruto and launched internationally to mobilize global support, the G7 Strategy positions women governors as transformative leaders championing inclusive political participation and legislative reforms to actualize the two-thirds gender rule.

vii) **The County Assemblies 750 Strategic Road Map:**

The County Assemblies (CA) 750 Strategic Road Map is a transformative framework aimed at significantly increasing the number of elected women Members of County Assemblies (MCAs) in Kenya from the current 97 to 750 by the 2027 general elections. It provides a detailed plan for capacity building, advocacy, and resource mobilization to support women's political participation at the county level. The Road Map includes monitoring frameworks to track progress, identify challenges, and recommend corrective actions. It complements the G7 Strategy by targeting grassroots leadership and ensuring that gender parity is achieved not only in gubernatorial positions but also in county legislative and executive bodies.

viii) **Bottom-Up Economic Transformation Agenda (BETA):**

BETA integrates gender equality into economic development by promoting women's leadership and participation in economic decision-making. It supports women's access to finance, entrepreneurship, and capacity building, linking economic empowerment with political and leadership opportunities. This agenda underlines the importance of gender equality for inclusive and sustainable economic growth.

2.1.3 Institutional Frameworks

Kenya has established a network of institutional frameworks that play critical roles in promoting women's leadership and advancing the two-thirds gender principle within their respective mandates.

- The **State Department for Gender Affairs and Affirmative Action** is central to policy development, capacity building, and gender mainstreaming across government. It has established Technical Working Groups and the Multi-Sectoral Working Group on the Two-Thirds Gender Principle to drive legal and constitutional alignment. The Department engages Ministries, Departments, Counties, and Agencies (MDCAs) to institutionalize gender-responsive initiatives, ensuring that gender equality is integrated into policy, legislation, and budgeting at both national and county levels. It also designs innovative programs that recognize and promote women's empowerment and leadership.
- The **National Gender and Equality Commission (NGEC)** has a constitutional mandate to promote gender equality and non-discrimination, focusing on women and other Special Interest Groups (SIGs) such as persons with disabilities, youth, children, and marginalized groups. NGEC monitors, audits, and reports on compliance with the two-thirds gender principle, conducts stakeholder engagement, and advocates for gender-responsive

governance, thereby holding institutions accountable for women's representation.

- The **Public Service Commission (PSC)** oversees recruitment, appointment, and personnel management within the public service. It ensures efficiency and fairness by reviewing and reforming recruitment policies to promote gender balance. Women's representation is actively supported through appointments to county public service boards and county executive committees, enhancing women's leadership at both national and devolved levels.
- The **Office of the Registrar of Political Parties (ORPP)** plays a key role in reviewing and reforming political party policies to align with gender equality requirements, ensuring that parties promote and comply with the two-thirds gender rule in their candidate nominations and internal governance.
- The **Independent Electoral and Boundaries Commission (IEBC)** enforces gender compliance in party nominations and elections. It conducts voter education and training to sensitize the public on the importance of gender equality in political participation, thereby supporting the realization of the two-thirds gender principle through credible and inclusive electoral processes.
- The **Kenya National Commission on Human Rights (KNCHR)** monitors compliance with constitutional provisions on gender equality, undertakes legal advocacy, raises public awareness, and provides capacity building to promote women's rights. KNCHR's work strengthens the legal and human rights environment for women's leadership.
- The **National Government Affirmative Action Fund (NGAAF)** provides funding and capacity building to support affirmative action initiatives, empowering women to participate effectively in political and leadership roles.

- **Parliament** is instrumental in legislating and amending laws, including constitutional provisions, to strengthen gender equality frameworks. It exercises oversight over executive appointments to ensure compliance with the two-thirds gender principle.
- The **Kenya Women Parliamentarians Association (KEWOPA)** implements a strategic plan (2024–2027) focused on legislative advocacy, constitutional amendments, mobilization of women parliamentarians, oversight, capacity building, and public awareness campaigns. KEWOPA plays a vital role in advancing women's political leadership and championing gender-responsive legislation.
- The **Judiciary** facilitates the interpretation and enforcement of the Constitution, protecting women's rights and providing legal redress where violations occur. Its role is critical in upholding the two-thirds gender principle through binding rulings and gender-sensitive judicial practices.
- The **Commission on Administration of Justice** investigates public institutions for compliance with gender equality laws and holds them accountable, ensuring institutional adherence to constitutional mandates.
- The **County Assemblies Forum** provides a platform for county legislators to coordinate efforts in promoting gender equality and women's leadership at the county level.
- The **Women Governors' Caucus (G7)** advocates for increased women's leadership within devolved governments, providing mentorship, capacity building, and policy advocacy to expand women's representation in county leadership positions.
- The **Office of the Women Rights Advisor** offers expert guidance on women's rights issues, supporting institutions to align their policies and practices with gender equality standards.

2.3 Current status of implementation of two-thirds in MDACs

2.3.1 Status of Implementation of the Two-Thirds Gender Principle in the National Government

The two-thirds gender principle, embedded in Article 27(8) of the Constitution of Kenya, 2010, requires that no more than two-thirds of the members of any elective or appointive body shall be of the same gender. The 2025 Economic Survey confirms that, despite incremental gains, the national government continues to fall short of this constitutional threshold in both Parliament and the Cabinet (KNBS, 2025).

- **Gender Representation in Parliament**

As of 2024, women's representation in Parliament remains below the one-third minimum required by the Constitution. According to the 2025 Economic Survey, women hold 82 out of 346 seats in the National Assembly (23.7%) and 21 out of 67 seats in the Senate (31.3%) (KNBS, 2025). This means that, overall, women constitute approximately 24.8% of the total membership of Parliament. While this reflects modest progress compared to previous years, the majority of these gains are attributable to affirmative action and nominated seats, rather than direct election. Leadership positions within Parliament remain predominantly occupied by men, and women's influence on legislative priorities is therefore constrained.

- **Gender Representation in Cabinet**

In the Cabinet, as of 2025, women hold 8 out of 26 Cabinet Secretary positions, representing 30.8% (KNBS, 2025). Although this is a slight improvement from the previous year, it still falls short of the constitutional requirement. Furthermore, women Cabinet Secretaries are often assigned to ministries perceived as less influential, limiting their impact on national policy direction.

- **Gender Representation in the Judiciary**

The Judiciary has made more significant progress toward achieving the two-thirds gender principle compared to other arms of government. According to the 2025 Economic Survey, women constitute approximately 42% of judges across all courts, with the Supreme Court having 3 out of 7 judges (42.9%) being women, including the Deputy Chief Justice. The Court of Appeal has achieved near parity with 48% women judges, while the High Court has 45% women judges (KNBS, 2025). However, disparities persist in leadership positions within the Judiciary, with fewer women serving as presiding judges or heading specialized divisions. Additionally, at the lower courts, particularly in rural and marginalized areas, women's representation among magistrates drops to approximately 38%, indicating that geographical and socio-cultural factors continue to influence gender balance even in the more progressive judicial arm.

- **Gender Representation in Senior Public Service and State Corporations**

The Economic Survey also reports that women account for 27.5% of Principal Secretaries (14 out of 51) and 29% of senior management positions in state corporations and parastatals. While gender parity is nearly achieved at entry and mid-levels of the public service, the proportion of women declines sharply at higher ranks, highlighting persistent barriers to advancement (KNBS, 2025).

Persistent Challenges and Barriers

Despite policy commitments and affirmative action measures, several challenges continue to impede the full realization of the two-thirds gender principle in national government:

- **Slow Implementation of Gender Mainstreaming Policies:** Many ministries, departments, and agencies have not fully operationalized gender mainstreaming frameworks, resulting in slow progress toward gender parity in appointments.

- **Socio-Cultural Barriers:** Deep-seated patriarchal norms and stereotypes continue to influence recruitment, promotion, and appointment processes, often favoring men for top leadership roles.
- **Limited Political Will:** The pace of legislative reforms and enforcement of gender quotas remains slow, with insufficient political commitment to drive transformative change.
- **Economic and Financial Constraints:** Many women lack access to the financial resources necessary to mount effective campaigns or pursue advanced professional development, limiting their competitiveness for top positions.
- **Workplace Environment:** The inadequate gender-responsive workplace policies and support systems, such as flexible work arrangements and mentorship programs, further constraints women's advancement to senior positions.
- **Violence and Intimidation:** Women in politics and public service continue to face various forms of violence and harassment, both online and offline, which deters many from pursuing or retaining leadership roles.

Table 1: Summary of Women's Representation in National Government (2024)

Position	Total Positions	Women	% Women	Constitutional Threshold Met?
National Assembly (MPs)	346	82	23.7%	No
Senate	67	21	31.3%	No
Cabinet Secretaries	26	8	30.8%	No
Supreme Court Judges	7	3	42.9%	Yes

Court of Appeal Judges	-	-	48.0%	Yes
High Court Judges	-	-	45.0%	Yes
Magistrates	-	-	38.0%	Yes
Principal Secretaries	51	14	27.5%	No

Source: Kenya National Bureau of Statistics (2025). Economic Survey 2025

2.3.2 Status of Implementation of the Two-Thirds Gender Principle in County Governments

The Constitution of Kenya, 2010 particularly Articles 27(3), 27(8), and 81(b) firmly establishes the principle of gender equity in all elective and appointive bodies, mandating that no more than two-thirds of the members be of the same gender. Despite this clear constitutional directive, the actual implementation of the two-thirds gender principle at the county level remains inconsistent and faces significant challenges.

Progress and Gaps in County Assemblies and Executives

Despite the constitutional mandate requiring that no more than two-thirds of members in any elective or appointive body be of the same gender, the implementation of this principle in Kenya's counties remains inconsistent and fraught with challenges (County Assemblies Forum, 2023). Data from recent gender audits and official reports reveal that while most county assemblies have technically achieved the 33% threshold for women's representation, this has been largely accomplished through the nomination of women rather than their direct election. For instance, in a 2024 assessment of 12 counties, 70% of women Members of County Assemblies (MCAs) were nominated, with only 30% elected

directly. Counties such as Kilifi, Tana River, Meru, Kitui, Bomet, Vihiga, Bungoma, Kisumu, Kisii, and Nairobi all relied heavily on nominations to meet the constitutional requirement, with some counties nominating the vast majority of their women MCAs (County Assemblies Forum, 2023)

Furthermore, the representation of women in leadership positions within county assemblies remains limited. The majority of assembly committees do not meet the 33% gender representation threshold for leadership, and women rarely serve as committee chairpersons. For example, in Kilifi, only two out of 20 committees had women chairpersons, and in Tana River, only one out of 18 committees was chaired by a woman. Similar patterns were observed in Meru, Kirinyaga, Kitui, and other counties, indicating that women's presence in county assemblies does not always translate to meaningful leadership roles (County Assemblies Forum, 2023)

The situation is even more concerning at the executive level. According to the National Gender and Equality Commission (NGEC), no county has fully complied with the two-thirds gender rule in the appointment of County Executive Committee Members (CECMs) and Chief Officers. This persistent non-compliance highlights a significant gap between constitutional ideals and actual practice in county governance structures (County Assemblies Forum, 2023)

To illustrate these trends, Table 1 below summarizes key indicators of women's representation in county assemblies and executives for the 2017 and 2022 election cycles:

Table 2: Summary of Women's Representation in County Assemblies and Executives (2017 & 2022)

INDICATOR	2017	2022	PROGRESS	GAPS/CHALLENGES
Total County Assemblies	47	47	-	-
Total MCAs (All Counties)	1,450	1,450	-	-
Elected Women MCAs	96	115	Slight increase in directly elected women MCAs	Still less than 10% of total MCAs are women elected directly
Nominated Women MCAs	680	622	Nominations remain the main mechanism for meeting the threshold	Heavy reliance on nominations rather than direct election
Total Women MCAs (Elected + Nominated)	776	737	Women's representation remains above 33% due to nominations	Substantive participation and leadership roles remain limited
% Women in County Assemblies	33.6%	33.1%	Constitutional threshold technically achieved	Representation is not always meaningful; leadership roles are rare
Counties with Women Committee Chairs	Data varies	Data varies	Some Counties have women chairing committees (Kilifi: 2/20; Tana River: 1/18)	Most committees do not meet the 33% threshold for women in leadership

Counties fully compliant in CECMs/Chief Officers	0	0	-	No county has fully complied with two-thirds gender rule in executive appointments
Counties with majority of women MCAs nominated	Most	Most	Kilifi, Tana River, Meru, Kitui, Bomet, Vihiga, Bungoma, Kisumu, Kisii, Nairobi	Indicates lack of electoral competitiveness for women

Source: County Assemblies (CA) 750 Strategic Road Map

Persistent Barriers

Several barriers continue to impede the full realization of the two-thirds gender principle in counties:

- Institutional and Policy-Related Challenges:** There is inadequate /prioritization of gender mainstreaming by county governments, evidenced by low response rates to gender audits and insufficient implementation of approved policies. The removal of gender mainstreaming targets from performance contracts and a weak legal framework for gender-responsive budgeting further undermine progress. Recruitment and promotion processes often remain inequitable, with cases of corruption and underrepresentation of women in selection panels.
- Socio-Cultural and Attitudinal Barriers:** Deeply rooted patriarchal norms, stereotypes, and social stigmas continue to associate leadership with masculinity, discouraging women and persons with disabilities (PWDs) from pursuing leadership positions. There is also a widespread misconception that women should only fill the minimum one-third quota, rather than striving for parity.

- **Structural and Procedural Barriers:** Recruitment criteria and processes often favor established professionals and older leaders, excluding women, youth, and PWDs from strategic decision-making. Limited awareness among duty bearers and the public about the two-thirds gender principle further hampers progress.
- **Capacity and Resource Constraints:** Many women, youth, and PWDs lack the necessary qualifications, experience, and mentorship to compete for senior leadership roles. There is also a shortage of targeted capacity-building and mentorship programs to support their advancement.
- **Accessibility and Work Environment:** Many county workplaces are not gender- or disability-responsive, limiting the full and effective participation of women, youth, and PWDs.
- **Socio-Economic Barriers:** Economic inequality, poverty, and unemployment disproportionately affect women and other marginalized groups, limiting their ability to compete for leadership positions.
- **Political and Electoral Violence:** Women in counties continue to face various forms of violence before, during, and after elections, including physical, psychological, and online abuse, which deters their participation in politics and leadership.

Opportunities and Ongoing Interventions

Despite these challenges, there are ongoing interventions and opportunities for improvement. Inter-agency collaborations, continuous training and capacity building, targeted mentorship programs, and the development of gender-disaggregated data are some of the strategies being employed to promote inclusivity. County assembly women caucuses, political parties, and state and non-state actors are also working to create a more enabling environment for women's participation through advocacy, legal reforms, and public awareness campaigns.

CHAPTER THREE

FINDINGS

3.1 Overview

This chapter presents key findings from the analysis of gender representation and the implementation of the not more than two-thirds gender principle across various Ministries, Departments, Agencies, and Counties (MDACs) during the 2024/2025 financial year. Drawing from data collected via a standardized questionnaire administered to institutions. The questionnaire targeted data on overall number of staff, staff in job group 'P' and above and staff who are members of a board or its equivalent and focused on representation of youth and people with disability(PWD). Data was disaggregated by gender.

3.2 Key Findings

3.2.1 Total Number of Staff in Institutions

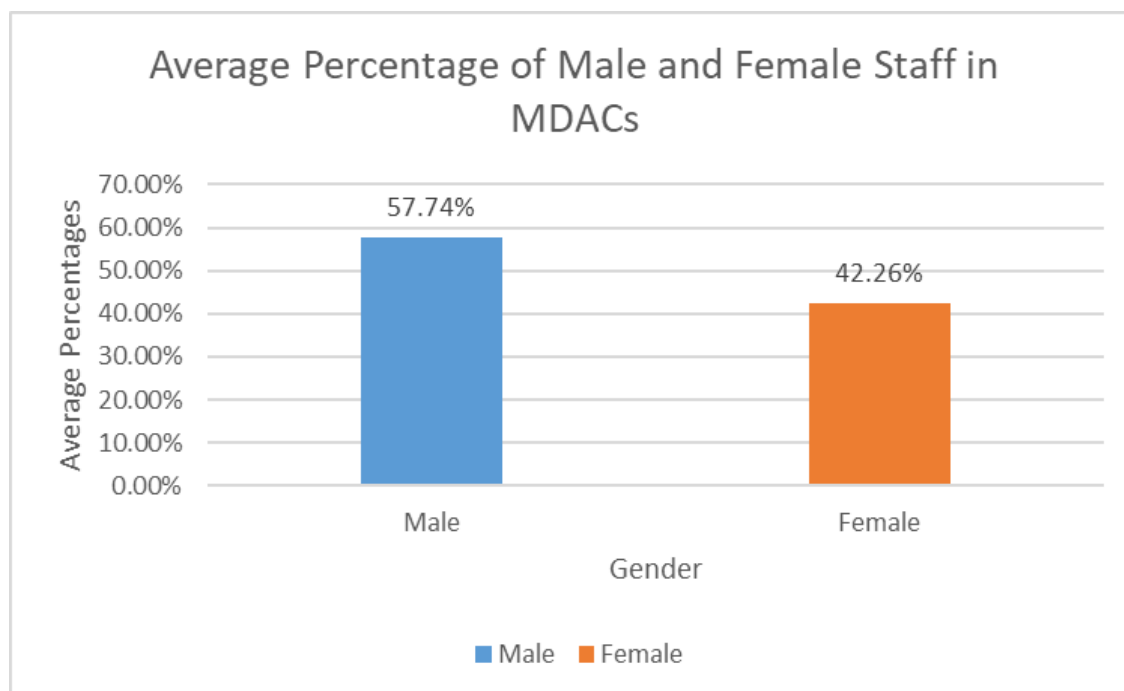


Fig1: Average Percentages of Male and Female Staff in MDACs

Figure 1 shows the overall average percentages of staff, 57.74% being male and 42.26% being female. The data analyzed from the questionnaires also revealed that the overall average percentage of staff with disabilities was 2.98%, with 2.5% being the average for male and 2.52 the average for % female. Overall percentage of youth working in MDAs are 16.97% of which 18.82% are the average for male and 21.23% are the average for female employees.

3.2.2 Number of Staff in Job Group 'P' and Above or its Equivalent

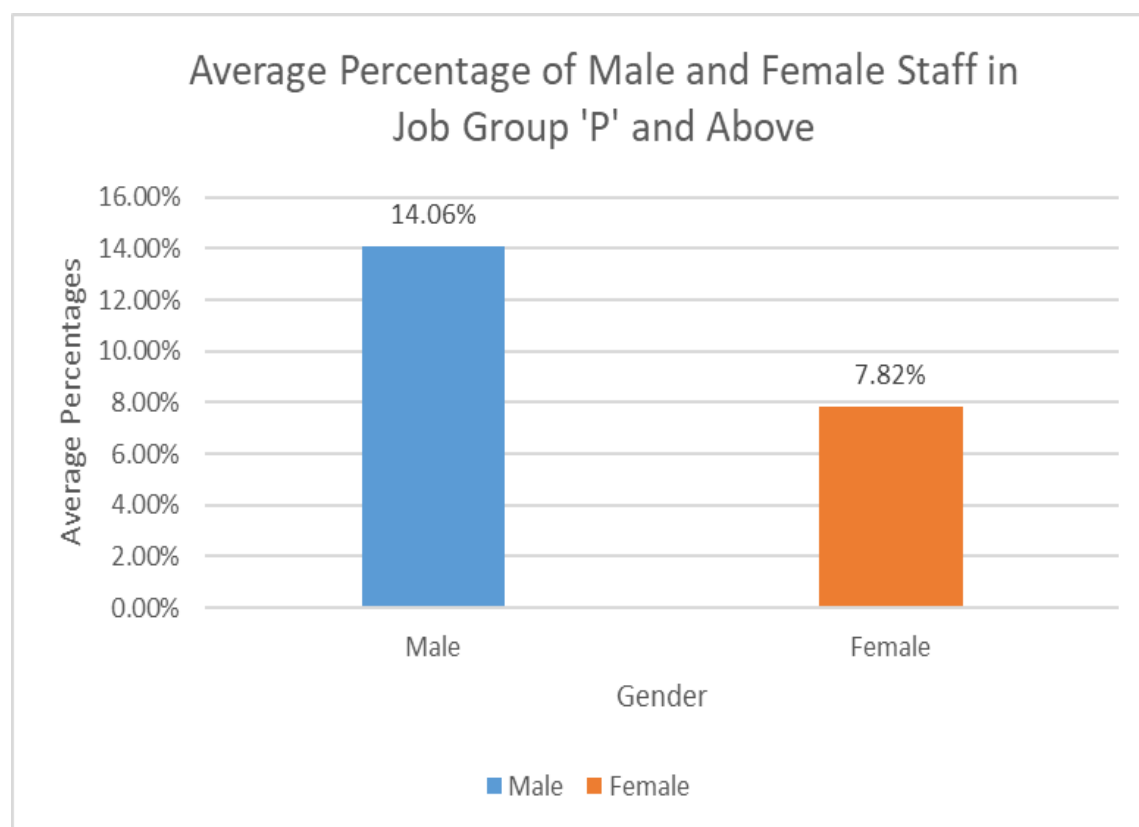


Fig 2: Average percentage of male and female staff in Job Group 'P' and above in MDACs

Figure 2 illustrates the total percentage of male and female staff in Job Group 'P' and above within Ministries, Departments, Agencies, and Counties (MDACs). The data reveals a significant gender disparity at senior levels, with males comprising 14.06% and females only 7.82% of staff in these upper job groups. This indicates that women remain underrepresented in higher echelons of public service,

highlighting the ongoing challenge of achieving gender parity in leadership and decision-making positions. The figure underscores the need for targeted interventions and affirmative action to accelerate the realization of the not more than two-thirds gender principle in senior public sector roles.

3.2.3 Number of members in a Board or its Equivalent

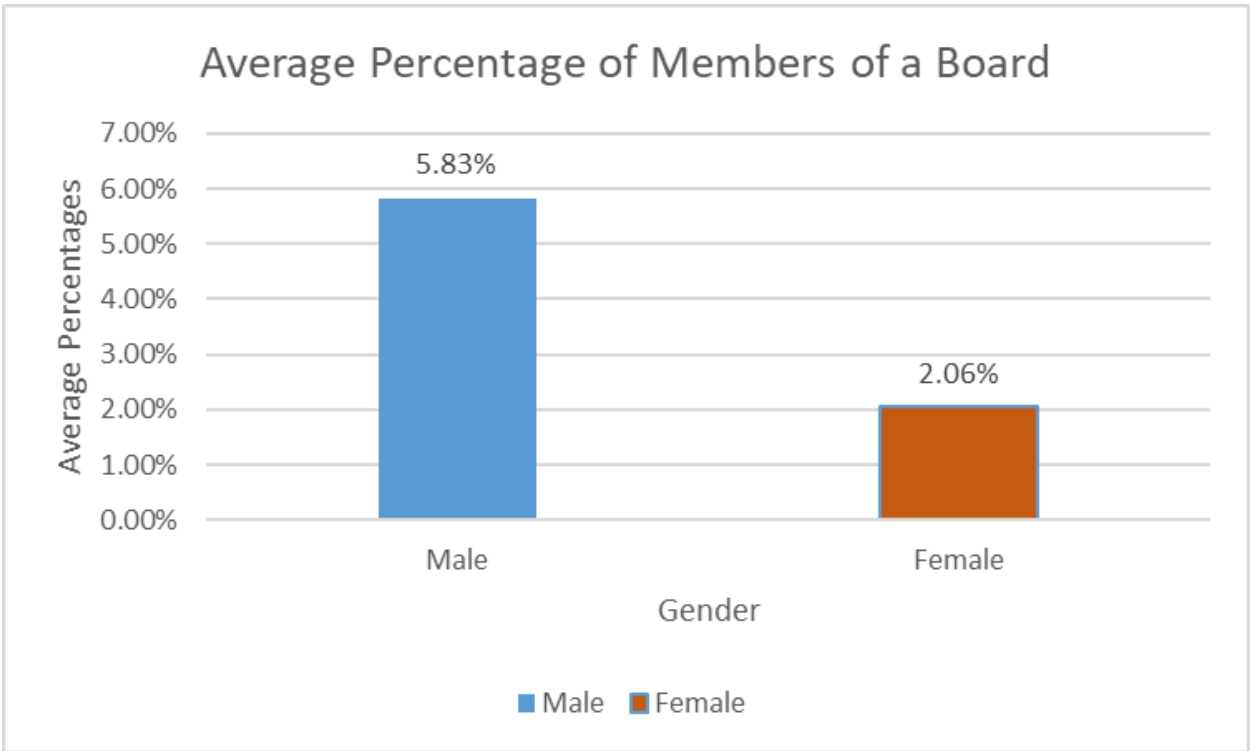


Fig 3: Average percentage of male and female staff who are members of a board or its equivalent

Figure 3 displays the total percentage of male and female staff who are members of a board or its equivalent within public sector institutions. The data reveals that males constitute a significantly higher proportion of board membership at 5.83%, compared to females at only 2.06%. This disparity highlights the underrepresentation of women in key decision-making and governance roles, underscoring the need for strengthened affirmative action and policy interventions to achieve gender balance and comply with the not more than two-thirds gender principle in public sector boards.

3.3 Analysis and discussion

The analysis of the data collected from MDACs for the 2024/2025 financial year demonstrates both progress and persistent gaps in the implementation of the not more than two-thirds gender principle.

3.3.1 Compliance in Overall Staffing

The overall staffing composition across MDACs demonstrates a significant stride towards meeting the constitutional requirement. Male employees constitute 57.74% of the total workforce, while female employees account for 42.26%. This ratio indicates that the majority of MDACs have achieved compliance with the two-thirds gender principle in their general staffing. Specifically, out of the 29 MDACs that submitted responses, 26 organizations (89.66%) reported having met the threshold of at least one-third representation for either gender. This high level of compliance reflects ongoing efforts by public institutions to mainstream gender equality in their employment practices.

3.3.2 Trends in Compliance

Despite the current high rate of compliance in overall staffing, a comparison with previous data suggests a slight deceleration in progress. The National Gender and Equality Commission (NGEC)'s 2022/2023 report indicated a 92% compliance rate among MDAs. The current figure of 89.66% represents a marginal decline. This trend suggests that while substantial progress has been made and is largely sustained, continuous vigilance and renewed efforts are necessary to prevent regression and to further close any remaining gender gaps in public sector employment.

3.3.3 Gender Disparity in Leadership and Board Membership

While general staffing shows strong compliance, disaggregated data on leadership and governance roles highlights a more pronounced gender disparity. As depicted in **Figure 3**, the average percentage of male staff serving as members of a board or its equivalent stands at 5.83%, whereas female staff hold only 2.06% of such positions. This significant underrepresentation of women in key decision-making and oversight bodies within public institutions indicates that the gains made in overall staffing have not yet translated proportionately to the highest levels of leadership. This gap underscores the ongoing challenges in achieving substantive gender parity in strategic governance roles.

3.3.4 Affirmative Action for Youth and Persons with Disabilities

Beyond gender balance, the findings indicate that affirmative action policies for youth and persons with disabilities (PWDs) have yet to be fully realized across MDACs. While the two-thirds gender principle is largely being met in terms of overall staffing, the inclusion of these other marginalized groups remains limited. This points to a broader need for more robust implementation of existing diversity and inclusion measures, and potentially the development of new strategies, to ensure equitable representation and opportunities for all segments of the population within the public service.

3.3.5 Summary of Key Findings

In summary, the data underscores that while significant strides have been made in ensuring gender representation within the general workforce of MDACs, further efforts are critically required to ensure equitable participation in leadership and decision-making roles, particularly on boards. Additionally, the analysis highlights the continued imperative to extend the benefits of affirmative action to other marginalized groups, notably youth and persons with disabilities, to foster a truly inclusive public sector.

3.4 Challenges and recommendations

Drawing from data collected through the administered questionnaires, MDACs identified a number of challenges that continue to hinder the full realization of the not more than two-thirds gender principle and broader inclusion objectives. They also proposed actionable recommendations to the government and other stakeholders to address these gaps.

3.4.1 Challenges

1. Institutional and Policy-Related Challenges

- Limited prioritization of gender mainstreaming by MDACs as reflected in the low response rate to questionnaires.
- Implementation gaps for approved policies such as the lack of enforcement of the 5% inclusivity requirement for persons with disabilities.
- Removal of gender mainstreaming (GM) targets in performance contracts (PC).
- Insufficient application of gender-responsive budgeting (GRB) due to inadequate legal framework.
- Inequitable human resource selection and recruitment processes.
- Underrepresentation in recruitment panels and processes.
- Incidences of corruption affecting recruitment and promotion outcomes.

2. Socio-Cultural and Attitudinal Barriers

- Prevailing societal norms associating leadership with masculinity, contributing to stigma and discrimination, especially against women and persons with disabilities.
- Persistent gender bias and discrimination toward women aspiring for leadership positions.
- The perception that women should only comprise the minimum one-third.

- Challenges related to balancing work and family responsibilities, particularly for women due to reproductive roles.
- Religious beliefs that restrict limiting women's participation in leadership roles.

3. Structural and Procedural Barriers

- Recruitment criteria that favor established professionals and older candidates, often to the disadvantage of youth.
- Exclusion of women from key strategic decision-making processes.
- Limited employment and leadership opportunities for women, youth, and PWDs.
- Inadequate awareness among duty bearers, women, and the public about gender equality commitments, especially regarding the two-thirds gender principle in both elective and appointive positions.

4. Capacity and Resource Constraints

- Insufficient qualifications and experience among women, youth, and persons with disabilities for senior leadership roles.
- Inadequate mentorship programs on leadership development programs targeting women, youth, and persons with disabilities.
- Low self-confidence among women, youths and PWDs to pursue leadership opportunities.

5. Accessibility and Work Environment

- Gender and disability unresponsive workplaces that limits accessibility and full and effective participation of women, youths and PWDs.

6. Socio-Economic Barriers

- Socio-economic challenges such as poverty, unemployment, and economic inequality that limit access to leadership opportunities.

Graphical Representation of Challenges

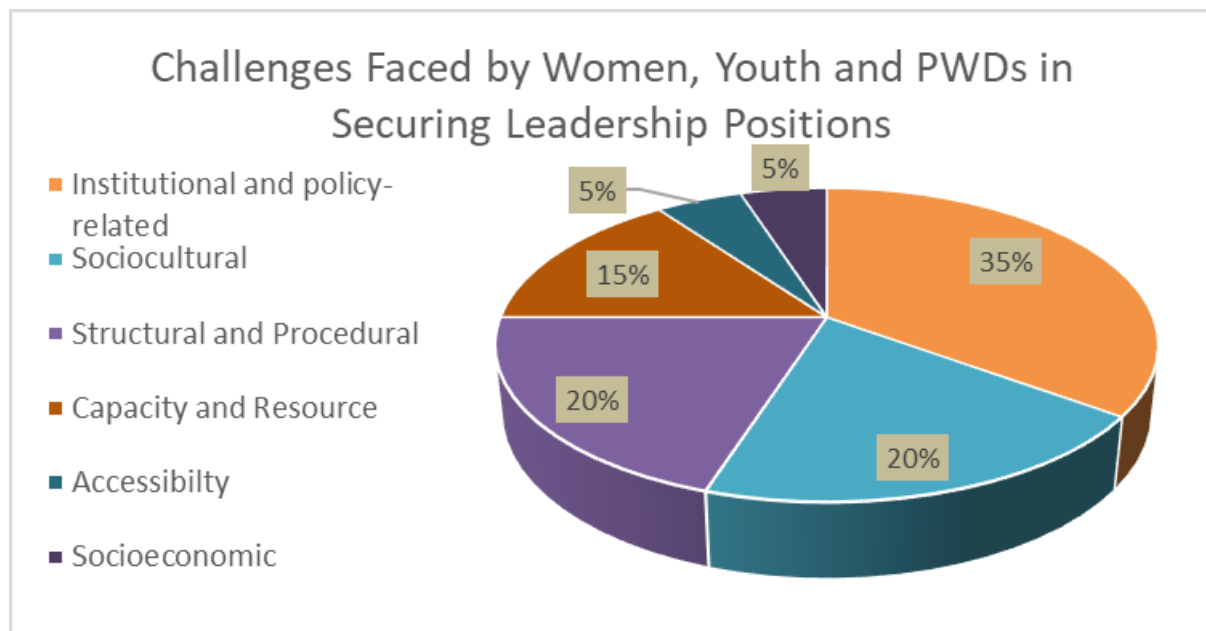


Fig4: Challenges Faced by Women, Youth and PWDs in securing leadership positions

3.4.2 Recommendations

1. To Government/ Policy makers

- i) Enact and operationalize legislation to close legal gaps and fully implement gender principles across all sectors.
- ii) Review and update recruitment policies to ensure fairness, transparency, and gender sensitivity at all levels.
- iii) Introduce Temporary Special Measures (TSM), such as revising schemes of service, to monitor and promote qualified women into leadership and decision-making positions.

- iv) Increase financial support for gender mainstreaming, leadership development, and related initiatives to strengthen institutional capacity.
- v) Ensure all government facilities and services are accessible to persons with disabilities, in compliance with relevant laws and standards.
- vi) Promote continuous awareness and sensitization on the two-thirds gender principle and gender mainstreaming policies at the national level.

2. To MDACs/Public Institutions/Independent commissions

- i) Foster a gender-sensitive work environment that supports diversity and inclusion.
- ii) Guarantee equal opportunities in recruitment, promotion, and training for management and leadership roles, ensuring adherence to gender principles at all levels.
- iii) Actively encourage women to apply for public sector jobs and allocate resources for targeted sensitization campaigns.
- iv) Develop and implement leadership development programs specifically for youth, women, and persons with disabilities.
- v) Institutionalize regular awareness and sensitization activities on the two-thirds gender principle and gender mainstreaming within organizations.
- vi) Invest in public awareness, advocacy, and capacity building to strengthen institutional understanding and commitment to gender equality.

3. To Development Partners

- i) Provide financial support for government and institutional gender equality initiatives.
- ii) Collaborate on public awareness, advocacy, and capacity-building programs in partnership with government and MDACs.

- iii) Support leadership development programs targeting youth and women to build a pipeline of future leaders.
- iv) Support in creating and maintaining gender-sensitive and accessible work environments for persons with disabilities.

4. Academia

- i) Design and implement leadership development programs for youths.
- ii) Conduct research and develop curricula on gender equality, leadership, and inclusivity to inform policy and practice.
- iii) Integrate gender equality and leadership modules into academic and professional training programs.

5. Civil society organizations

- i) Serve as watchdogs and advocates for the implementation of gender principles, holding institutions accountable and raising public awareness.

6. General public

- i) Promote positive attitudes and behaviors towards gender equality, diversity, and inclusion in all spheres of life.

CHAPTER FOUR

CONCLUSION AND WAY FORWARD

4.1 Conclusion

The State Department for Gender and Affirmative Action has demonstrated commendable strides in spearheading efforts to implement the constitutional mandate of the not more than two-thirds gender principle across Ministries, Departments, Agencies, and County Governments. The 2024/2025 analysis reveals both measurable progress and persistent gaps in achieving gender parity, especially in senior leadership, board representation, and the inclusion of youth and persons with disabilities (PWDs).

Despite supportive legislative frameworks and policy commitments, the data points to systemic challenges ranging from cultural biases and inadequate political will to limited institutional capacity and inconsistent compliance mechanisms. The Department's leadership in convening multi stakeholder dialogues, commissioning data driven assessments, and advocating for gender-responsive budgeting remains instrumental in catalyzing national reforms.

However, the journey toward full realization of gender equality in public leadership remains of significant challenge. Targeted, consistent, and inclusive actions are essential to close the gaps as well the bottlenecks so as to empower all Kenyans irrespective of gender or ability to meaningfully participate in governance and decision making spaces.

4.2 Way Forward

4.2.1 Establish the current status of implementation of the two-thirds gender principle in MDACs in terms of HR practices and level of awareness of related legal frameworks

- Institutionalize regular gender audits and digitalize data collection across all MDACs for real time monitoring.
- Develop a centralized gender compliance dashboard disaggregated by gender, age, and disability.
- Reintroduce gender mainstreaming targets in Performance Contracts to improve visibility and accountability.
- Strengthen Gender Mainstreaming Units with tools to track HR patterns and policy awareness.

4.2.2 Identify gaps in implementation of the two-thirds gender principle in elective and appointive positions.

- Conduct targeted reviews of recruitment, promotions, and appointment practices across MDACs.
- Partner with NGEC, CoG, CAF, IEBC, and ORPP to assess structural barriers and political bottlenecks.
- Map underperforming sectors and (Executive and Assembly) through comparative scorecards and gender-disaggregated staffing data.
- Leverage feedback from the expanded questionnaire to isolate policy and institutional bottlenecks.

4.2.3 Identify actionable strategies for enhancing implementation of the two-thirds gender principle.

- Roll out mentorship and leadership development programs for women and marginalized groups.
- Build coalitions across public, private, and civil society sectors to support legal enforcement and public awareness.
- Ensure inclusive recruitment by enforcing the 5% PWD employment quota and rolling out youth-friendly leadership schemes.
- Promote continuous civic education, especially in rural counties, to shift socio-cultural mindsets and boost demand-side accountability

This report posits that some institutions have met not more than two thirds gender principle implies that with the reinstatement of the GM indicator in the PC they can better their performance. Incentives for high achievers would motivate other institutions towards realization of the not more than two thirds principle. Documenting good practices for institutions would enhance knowledge management for effective good practice.

Implement Gender Responsive Budgeting through increased budget allocation for gender mainstreaming programs and activities.

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ANNEXES

ANNEX I: Questionnaire



MINISTRY OF GENDER, CULTURE, THE ARTS
AND HERITAGE

STATE DEPARTMENT FOR GENDER AND
AFFIRMATIVE ACTION

QUESTIONNAIRE ON THE STATUS OF IMPLEMENTATION OF THE NOT MORE THAN TWO-THIRDS GENDER PRINCIPLE IN MINISTRIES, DEPARTMENTS AND AGENCIES (MDAs) FOR THE 2024/2025 FINANCIAL YEAR

Introduction

The not more than two-thirds gender principle is a Constitutional imperative that limits the dominance of any single gender in decision-making bodies. Specifically, Article 27(6) provides that *'the State shall take legislative and other measures, including affirmative action programmes and policies designed to redress any disadvantage suffered by individuals or groups because of past discrimination.'* Article 27(8) further provides that *'the State shall take legislative and other measures to implement the principle that not more than two-thirds of the members of elective or appointive bodies shall be of the same gender.'*

The principle aims to create a more inclusive and diverse governance structure that reflects the composition of the population and ensures that the perspectives, experiences and interests of both men and women are considered in the formulation and implementation of laws and policies.

The goal of this questionnaire is to assess the status of implementation of the not more than two-thirds gender principle in Ministries, Departments and Agencies (MDAs) in the 2024/2025 financial year and identify areas for improvement in accordance with the Bottom-Up Economic Transformation Agenda (BETA) and the Fourth Medium Term Plan (MTPIV) priorities.

Section A: General Information

1. Name of Respondent: _____
2. Position/Designation: _____
3. Telephone: _____ Email: _____

4. Sex:

☐ Male

☐ Female

5. Name of Organization in Full: _____

6. Type of Organization:

☐ Ministry and State Department

☐ State Corporation and Semi-Autonomous Government Agency (SAGA)

☐ Public University

☐ Tertiary Institution

☐ Constitutional Commission and Independent Office

☐ Statutory Commission and Authority

☐ Other (specify) _____

Section B: Staff Establishment

7. Total Number of Staff in your institution:

Male: _____

Female: _____

Total: _____

Persons with disabilities: Men: _____ Women: _____ Total: _____

Youth: Men: _____ Women: _____ Total: _____

8. Number of employees in job group "P" and above or its equivalent

Male: _____

Female: _____

Total: _____

Persons with disabilities: Men: _____ Women: _____ Total: _____

Youth: Men: _____ Women: _____ Total: _____

9. Number of Board members or its equivalent (*where applicable*)

Male: _____

Female: _____

Total: _____

Persons with disabilities: Men: _____ Women: _____ Total: _____

Youth: Men: _____ Women: _____ Total: _____

Section C: Awareness and Legal Framework

10. On a scale of 1-5, how would you rate the level of awareness of the not more than two-thirds gender principle within your institution with 1 being very low and 5 very high.

- ☐ Very low (1)
- ☐ Low (2)
- ☐ Moderate (3)
- ☐ High (4)
- ☐ Very High (5)

11. Does your institution implement policies to comply with the not more than two-thirds gender principle?

- ☐ Yes
- ☐ No

12. If yes, what policies or guidelines do your institution use in implementing the not more than two thirds gender principle (*tick all that apply*);

- ☐ The Constitution of Kenya 2010
- ☐ The Public Service Guidelines on Gender Mainstreaming
- ☐ The National Policy on Gender and Development, 2019
- ☐ National Gender and Equality Commission (NGEC) Act, 2011
- ☐ Sector and Institutional Workplace Policies on Gender Mainstreaming
- ☐ Other (*specify*) _____

13. If no, why?

14. What other strategies does your institution apply in order to promote realization of the not more than two-thirds gender principle?

- ☐ Staff Selection and Recruitment
- ☐ Gender Responsive Budgeting
- ☐ Affirmative Action Programs (*specify*) _____
- ☐ Gender Desks/ Focal Persons/ Committee
- ☐ Gender Audits
- ☐ Sensitization and Training
- ☐ Other (*specify*) _____

Section D: Challenges and Recommendations

15. What challenges, if any, have you experienced in implementing the not more than two-thirds gender principle within your institution? (*you may select more than one*)

- ☐ Inadequate financial resources
- ☐ Inadequate number of qualified candidates to meet gender quotas
- ☐ Lack of political goodwill
- ☐ Socio-cultural factors
- ☐ Misconceptions about the not more than two thirds gender principle
- ☐ Other (*explain*) _____

16. In your opinion, what challenges do women, youth and persons with disabilities face in securing leadership positions in the public service in general?

17. In your opinion, what can the Government do to fully realize the not more than two-thirds gender principle in the Public Service?

Signed and stamped: _____ **Date:** _____

PLEASE SCAN AND SEND THE FILLED QUESTIONNAIRE TO GM@GENDER.GO.KE

ANNEX II: List of Respondents

S/No	NAME OF INSTITUTION
1.	Media Council Of Kenya
2.	Coast Development Authority
3.	Ewaso Ngiro South Development Authority
4.	Ewaso Ngiro North Development Authority
5.	Special Economic Zones Authority
6.	Tana & Athi Rivers Development Authority
7.	Kenya Institute of Mass Communication
8.	Warehouse Receipt System Council
9.	Lake Basin Development Authority
10.	Kenya Trade Remedies Agency
11.	Communications Authority of Kenya
12.	Kenya Broadcasting Corp.
13.	Postal Corporation of Kenya
14.	Export Processing Zones Authority
15.	Kerio Valley Development Authority
16.	National Communication Secretariat
17.	Kenya Development Corp.
18.	State Department of ICT & Digital Economy
19.	State Department of Parliamentary Affairs

20.	State Department of Public Works
21.	State Department of Broadcasting and Telecommunications
22.	State Department of Cabinet Affairs
23.	State Department of Devolution
24.	State Department of Trade
25.	State Department of Blue Economy & Fisheries
26.	State Department of Economic Planning
27.	Ministry of Investment, Trade and Industry
28.	Office of The Prime Cabinet Secretary
29.	State Department for Gender Affairs and Affirmative Action



FEATURES

List of Top Construction Projects in Kenya – 2025

Overview of the country's biggest construction ventures.



Updated on June 26, 2025

By **Judy Mwende** ✕



Turkana-Lamu oil pipeline is a Vision 2030 flagship project. PHOTO | FILE

This annual inventory of mega construction projects in Kenya is produced by *CK* to assist investors to identify and pursue potentially lucrative business opportunities.

The platform mainly focuses on projects valued at Sh10 billion or more that are either underway or recently announced. Project data is gathered from public information sources.

While efforts have been made to obtain the most recent information, users of this resource should know that projects are constantly being re-evaluated by their owners.

Some of the largest planned or upcoming projects in Kenya in 2025 include:-

1.) Lapsset

Kenya's most ambitious venture, the Sh2 trillion Lamu Port-South Sudan-Ethiopia-Transport Corridor project is hoped to boost economic activities and double the country's GDP.

Its main components include Lamu Port, the Lamu-Ethiopia-South Sudan highway, Lamu-Juba-Addis Ababa railway, the oil refinery and a 2,240km pipeline linking oil fields in South Sudan to the refinery at Lamu Port.

It also includes the construction of three resort cities at Lamu, Isiolo and Lokichoggio, the construction of airports in the resort cities and the development of a 1,100MW power line and a 185km water supply line.

2.) Mega Dams

Since April 2013, various government agencies have signed or announced more than Sh700 billion worth of dam construction projects across the country.

Several mega dams are currently under construction for Sh143 billion.

These include the Sh37 billion Thwake Dam in Kitui/Makueni counties, the Sh28 billion Itare Dam in Nakuru County, and the Sh5 billion Siyoi Muruny in West Pokot County.

3.) Northlands City

The Kenyattas are undertaking a project that will culminate in an 11,000-acre estate comprising residential and commercial units hosting about 250,000 people.

Dubbed Northlands City, the development that is estimated to cost Sh500 billion will occupy an 11,576 parcel of land in Ruiru – about 15km from the Nairobi city centre.

4.) Standard Gauge Railway

Construction of the Mombasa-Malaba standard gauge railway was launched by President Uhuru Kenyatta on November 28, 2013.

Phase one of the project – from Mombasa to Nairobi was completed in 2017 for Sh327 billion. Phase 2A, from Nairobi to Naivasha, was concluded in 2019 at Sh150 billion.

However, the project has since been put on hold due to lack of finances.

5.) Tatu City

Construction of a 2,500-acre mixed-use development in Ruiru, got underway in 2014 after legal battles that had put the Sh220 billion project on hold for four years.

Tatu City, promoted as Kenya's first privately managed city, was launched in October 2010 but stalled shortly after due to land ownership wrangles. The issues have since been resolved.

6.) Konza Technology City

The planned construction of a Sh1.5 trillion “Silicon Savannah” in Machakos County was identified as one of the key drivers of Vision 2030.

However, the project has not made significant progress since its groundbreaking in 2013 except for the construction of the headquarters of the Konza Technopolis Development Authority.

7.) Nairobi-Mombasa Expressway

Four years after Kenya signed a deal with US firm Bechel for the construction of a Sh300 billion expressway between Nairobi and Mombasa, the two parties are yet to agree on how to finance the project despite a series of high-level talks.

Kenya wants the 473km road to be built through the Public Private Partnership (PPP) model while Bechel is opposed to the model which it says will cost Sh540 billion over the next 25 years.

8.) Kenol-Isiolo Road

Plans for the dual carriageway received a major boost in July 2020 following the start of the Sh16 billion Kenol-Marua segment of the road project.

The 219km highway, which will be built in two segments: Kenol-Marua (84km) and Marua-Isiolo (135km), is scheduled for completion by December 2023.

9.) Mau Mau Road

Construction of a 540km road that seeks to honour the role of Mau Mau freedom fighters in the liberation of Kenya from colonialists is underway, offering three central Kenya counties a new artery into Nairobi.

Christened Mau Mau Road, the highway starts at Gataka in Limuru, and then passes through Kamahindu and Kibichoi in Kiambu before negotiating its way through Kinyona in Kigumo and Ichichi in Murang'a.

10.) The Pinnacle Hilton

Inaugurated in May 2017, the project comprises a 5-star hotel and a 300-metres high office block that will overtake Leonardo in Sandton, South Africa, as Africa's tallest building.

The 255-room Hilton Nairobi Upper Hill will be hosted on the 45-storey wing, while the 70-storey wing will comprise Grade A commercial offices and a luxury shopping mall.

The Pinnacle Hilton has been put on hold after running into legal issues.

11.) Turkana-Lamu Pipeline

British energy services firm Wood Group Plc has completed design work for a massive pipeline that will move crude oil from Lokichar fields in Turkana to the port of Lamu.

The company, which was in March 2018 appointed by Kenya to undertake the Front End Engineering Design for the 824km pipeline, has delivered [two design options](#).

RELATED: [10 Biggest Projects in Africa](#)

The first option comprising a pipeline with onshore storage facilities will cost Sh120 billion – while one with floating storage will cost Sh110 billion.

12.) Mau Summit Road

Construction of a toll highway from [Nairobi to Mau Summit](#) is expected expected to be completed under a Public-Private Partnership (PPP) model by China Road and Bridge Corporation (CRBC), which recently submitted a proposal to undertake the project.

The Sh180 billion project will involve the expansion of the 180-kilometre road into a four-lane dual carriageway from Rironi in Limuru to Mau Summit in Nakuru County.

13.) Nairobi Railway City

After nearly a decade of waiting, groundbreaking has been held for the proposed [Nairobi Railway City](#), which seeks to decongest the city centre.

The venture which was announced in 2010, involves the construction of a 425-acre urban development on the area between Haile Sellasie Avenue, Uhuru Highway and Bunyala Road – comprising transit stations, and residential and commercial buildings among other features.

14.) Mombasa Gate Bridge

The Kenya National Highways Authority has developed a detailed design for the Sh85 billion [Mombasa Gate Bridge](#), with works expected to begin soon.

KeNHA is expected to embark on the process of acquiring land for the project and work on the relocation plan which is expected to go on until later in the year.

15.) Nairobi Mass Transport System

Kenya has been planning to put in place a Sh35 billion mass public transport system in a bid to bring order into the Nairobi transport sector.

The project, which is funded by the World Bank (Sh25.2 billion) and the government (Sh9.8 billion), was scheduled to begin in 2017 but that did not happen for some [weird reasons](#).

16.) Mai-Mahiu Suswa Road

The government is set to redesign and reconstruct a 41km road from Maai Mahiu to Suswa in a bid to end recurrent disruption and rerouting of traffic during the rainy season.

The Mai-Mahiu Suswa Road, which serves the Maasai Mara Game Reserve, will be reconstructed with provision for dual carriageway in the future as traffic volumes increase.

17.) Kiambu-Mang'u-Thika Road

KeNHA is set to undertake a Sh10.78 billion project that will see sections of a road that connects Kiambu Road to Thika Road upgraded into a dual carriageway.

The [project is split into six segments](#). The 12km stretch from Kiambu Road to Ngewa will be made a dual carriageway, while the 10km section between Ngewa and Kibichoi will be a single carriageway.

18.) Palm Exotica

The [Sh23 billion project](#), which seeks to deliver a 61-floor luxury hotel in Watamu, Kilifi County, is in limbo after Nema [declined to approve](#) the venture, citing the project's failure to comply with zoning plans.

19.) Tana River Nuclear Plant

The Nuclear Power and Energy Agency (NuPEA) is seeking regulatory approval for the construction of a [Sh540 billion nuclear power plant](#) in Tana River.

The first nuclear power plant of 1,000 MW, is expected to be commissioned by 2027 and it is projected to grow to 4,000 MW by 2035.

20.) Nairobi Western Bypass

Construction is underway on the [Nairobi Western Bypass](#), a Sh17 billion highway that seeks to ease traffic congestion in the city.

The 16.79km highway, which is being undertaken by China Road and Bridge Corporation, kicks off at Gitaru on the Nairobi-Nakuru highway and links the Southern Bypass in Kikuyu.

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Judy Mwende



Judy Mwende, a Journalism graduate from the University of Nairobi, is a seasoned writer and editor with more than a decade of practical experience covering the global construction industry.

Womenomics: Gender Inclusivity as a Grow Strategy in Japan

Janice Elysia, Ni Putu Juniari, Ni Luh Putu Cintya Devi
Universitas Udayana

ABSTRACT

As a developed country, Japan is not immune to difficulties. Hyper-aged population, economic stagnation, and gender inequality are some of the crucial issues. The presence of the Womenomics policy in 2013 as an effort to empower women in Japan is one of the Japanese government's solutions to mitigate the problem of hyper-aged population, economic stagnation, and gender disparity. This research aims to discover and examine the challenges of the 21st century in Japan, particularly the subject of women's empowerment and its correlation with economic growth. The descriptive qualitative case study research method was applied to examine the political goods within the Womenomics policy. With a public policy approach, the study's findings represent Japan's efforts to implement an gender-based innovative policy that allows Japanese women to access equal opportunities in social, political, education, and economic sectors to increase the labour force number as the growth strategy to mitigate the impact of the hyper-aged population in Japan. This policy shows that Japanese women have grown in the workplace, however many challenges still occur to tackle the gender-biased paradigm in Japanese society, such as wage-gap problems.

Keywords: Japan; Gender Inclusivity; Innovative Policy; Womenomics

INTRODUCTION

The patriarchal ideology has been around for a long time, limiting how women act in public. This ideology is the core problem of the gender inequality problem in Japanese society that has long been a global issue. Japan is one of the most developed countries in Asia regarding technology and many other aspects. However, if we trace the track back to the 20th century, we can see how women in Japan have limited access to act in public. In the Confucian view, women must obey three men: their father, husband, and sons. Women are seen as incompetent. Therefore there is a big superiority complex in the country that limits women.

The superiority complex hanging around in Japan revolves around every aspect, certainty that the speech forms used between the masculine and feminine, the seating arrangement, and the style of interaction will all demonstrate the superiority of the male and subordinate status of the female. The Japanese hiring system was very male-dominant, and even though there were many opportunities, even more than in the US, the women in Japan did not feel that because they never got the options.

Talking about the issue of women's liberation from the confines of patriarchal thought does experience complex dynamics. Women in Japan got their right to vote for the first time on April 10, 1946. Based on the writings of Taki Fujita, namely Women and Politics in Japan, Japanese women have been fighting for their right to vote for more than 30 years. Previously, women's political rights successfully obtained were limited to attending political gatherings after the New Women's Association struggle chaired by Raicho Hiratsuka when previously banned before 1919. By amendment, The General Election Law finally allowed women to participate in elections in general. As evidenced by the election of women in local

assemblies even though they are in large numbers, namely only 1.6 percent in prefectural assemblies, 1.1 percent in city assemblies, and 0.6 percent in the village and village assemblies (Fujita, 1968). Progress of political rights for women in Japan could be faster. The highest number of political participation women in the national diet was 73 women in the 2000s (Usui, et al., 2003). In 2014, only 169 female candidates took part in the general election, out of 1093 or 15%.

Even after the right to vote for Japanese women, their hardship did not stop there. Women are still marginalised from the decision-making activities of leftist groups driving activists, as well as at work. Women's reproductive function is considered an obstacle that makes women considered to have functional limitations. The current problems in the 21st century regarding women in Japan are Gender Discrimination at the University of Tokyo Medical School and Gender-Based Discrimination in Japan's Olympic and Paralympic Administration. The University of Tokyo was proven to manipulate the test scores of men and women. They controlled the men's scores just so more men could get into medical school because many women doctors left their job to give birth to children or get married. Another current problem regarding this issue in Japan is the Tokyo Olympic organising committee president, who throws a sexist comment in one of his speeches regarding how women talk too much. This sexist comment has spotlighted how far Japan lags behind other prosperous countries in advancing women in politics or the boardrooms. Japan stands 121st out of 153 in the World Economic Forum's gender equality rankings. These two news stories are only examples of how the patriarchal form of culture is still attached to Japanese government bodies, especially conservative groups, and legitimise that women are physically incapable and their capacity to become a doctor or athletes.

We cannot deny that economic development has become a force to be reckoned with, and many wonder how long Japan can continue to prosper. Looking back at Japan's current economic development, the quantity of growth has yet to show any evidence of significant improvement in the last decade or so, causing the country to confront economic stagnation. The stagnating economy is tied to their country's labour productivity, which is now facing a hyper-aged population condition; the country is getting more older people rather than infants. Ironically, this situation is getting worse because of the gender gap which directly narrows Japanese women's participation in the labour force for decades. Thus, it became critical for Japan to increase its population and labour force number in order to help the economy.

Therefore, reflecting on the economic urgency, all these limitations for women then resulted in gender wage differences and the glass ceiling phenomenon. This inequality also occurs in the economic and employment fields. There is still a significant wage gap between women and men. Namely, Japan is one of the countries with the most considerable wage gap among all OECD (Economic Co-operation and Development) countries. Reporting to the OECD's official website, in 2021, Japan ranks third in the gender wage gap, which is 22.1%. By 2022, it is estimated that the gender pay gap in Japan will be 22%. The factors behind this are the regular and non-regular employment system— many women become non-regular workers who are low-paid, have deadlines, and have specific work obligations (Yamaguchi, 2019), and the low percentage of women occupying managerial positions. The human resource management system also influences this wage gap with gender differences (Hara, 2016). This model contributes significantly to the creation of implicit gender boundaries in society.

From this wage gap problem, the glass ceiling phenomenon is a current problem for Japanese women pursuing their careers. The glass ceiling phenomenon is where it is difficult for women to advance their career positions to a higher level in an institution. This

phenomenon happened because of the constant act of belittling women. All those limiting women's acts result in gender stereotypes that women are best at home, caring for their children and family rather than working and pursuing their careers. People constantly see women incapable of building connections with others and actualizing themselves at work. Besides those biased genders, women's double burden of constantly choosing between their families or jobs also pushed them back.

Of all the problems presented and to achieve an inclusive, equal, and just society, it is essential to create a healthy space for all sections of society without exception. Departing from discrimination and the absence of fulfilling women's rights in Japan in the private and public spheres, it cannot be denied that Japanese women still often experience objectification, violence, and injustice, which place women amid powerlessness. The role of women is often belittled and sidelined. Not to mention compartmentalised based on class stratification and segregated in society. It is then crucial to ensure that the role and potential of women can be pushed to the maximum level, giving them a healthy and fair space to bestow their contributions in all sectors. Ensuring equal access and opportunity is one of the efforts that can be made to implement women's empowerment and encourage maximising the role and potential of women in the private and public spheres.

Therefore, empowering women is an important thing to do in order to achieve a Japanese society that is inclusive, equal, and just in all aspects of life. This is also a crucial effort to lift Japan's economic stagnation and mitigate the hyper-aged population impact that has haunted Japan for the past few decades. Amid this alarming situation, a "Womenomics" policy emerged, encouraging equal access for women in education and the workforce. Even though a gender-based policy is essential to boost traditional stigma and create more inclusive social penetration, it is still important to analyze the political goods of the policy. It is necessary to analyze the values and factors that drive the transformation of a conservative political system which turn into a gender inclusive one (system goods), input and output from political processes that involve the society and government to issue a gender-based policy (process goods), and public expectations of the government and its policies (policy goods).

ANALYTICAL FRAMEWORK

To support this research, researchers collect relevant previous research. The first article we used was research titled "Injustice Continuity: Gender Inequality in Japan in the Twenty-First Century" by Arifin, M (2021). This study discusses Japan as a highly developed country in terms of its economy. The combination of Japan's conservative worldview with the country's economic development is a dilemma for Japan, resulting in economic stagnation and a shrinking labour force population. This difficulty is caused by Japan's patriarchal worldview, which views women after marriage as undeserving of employment and how they must take care of the family no matter what. As a result, Japanese women opt not to marry or even refuse to have children after marriage to further their professions because having children or getting married is considered a death sentence. In order to enable women to advance their professions, have families, and have children, Abe developed the Womenomics initiative during his time as prime minister.

Nevertheless, with the Japanese patriarchal mindset, they still think less of a woman based on their gender, not their capability in the workforce. Therefore, this initiative did not significantly impact encouraging women to work. According to Kingston (2013), Abe was harshly condemned for his choice, knowing that women are disenfranchised and earn less than males. However, Abe's epiphany came to an end without any action. Although Abe vowed to provide childcare for those women and mothers, their pay was significantly lower

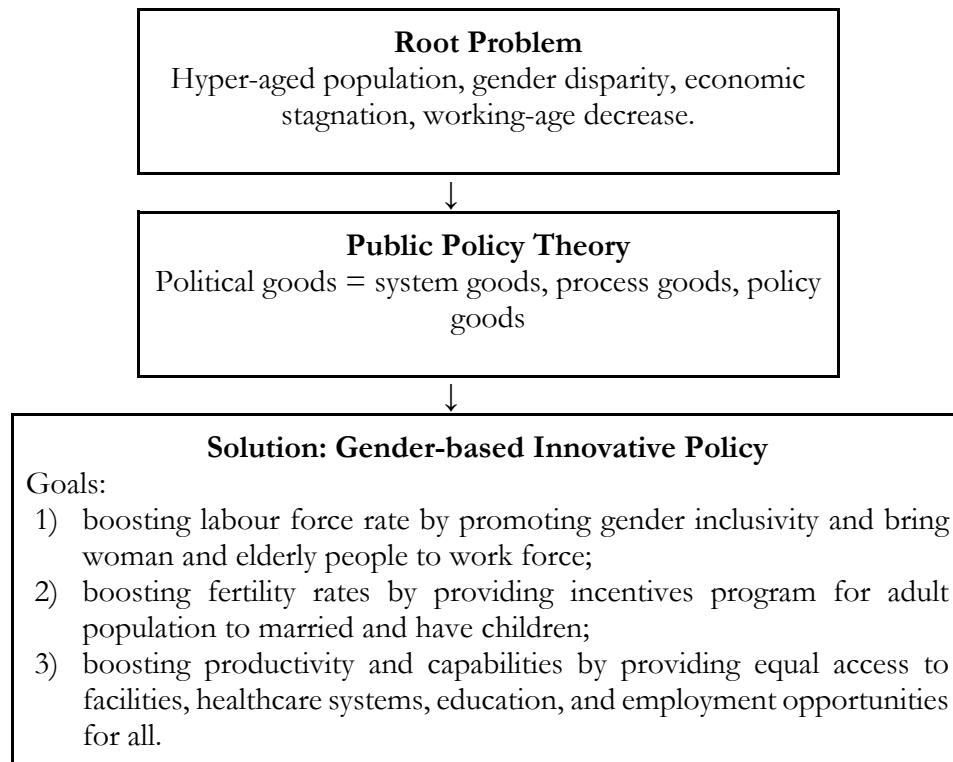
than that of males, leaving them unable to afford it. Finally, women are again forced to choose between their careers and their families.

Researchers utilised the Japanese Government's Japan Revitalization Strategy as the second study in this research. This Japanese Government plan discusses how Womenomics, a program begun by Abe during his term, is one of the growth strategies the Japanese Government employs to alleviate the impact of the country's hyper-aged population. Running the Womenomics program can help Japan escape the economic stagnation that has plagued them. This demonstrates how women can contribute to economic progress and play an essential role in society, particularly in the economic sector.

As the writing of this article will focus on the discussion of innovative public policy in Japan, the theory that should be used is public policy theory. In the book entitled "Comparative Politics Today", Powell, Dalton, and Strøm describe public policy as the entirety of authoritative public decisions made by the government, including the policy output of the political system. Policies are issued for a purpose that is generally intended to promote the end results which are referred as policy outcomes. In the nature of a democratic society, politicians usually have the drive to pursue political goals that seek to meet the values and aspirations of its citizens, this is known as "political goods".

Furthermore, this book also explained that there are three aspects that shape the political culture of a country which also utilises different orientations towards politics or political goods. The three aspects are system goods, process goods, and policy goods. System goods is the view of people towards the values and organisations that make up the political system of a country. At this level, the desired goal is the maintenance of a stable political system that can adapt to challenges and changes, including in terms of policies. Furthermore, process goods are citizen's expectations of political rules, decision-making methods, as well as the relationship of citizens with the government as a whole (inputs and outputs). The ideally achieved goals at the process level are citizen input (aspiration) to the government that is running well, there is compliance and support from citizens to the law and government, and there is also procedural justice in the political process or equality before the law. Finally, policy goods are the expectations of public policy towards government, such as welfare, security, fairness, and liberty (Powell, Dalton, and Strøm, 2015: 146-148).

Hence, in analysing Womenomics policy in Japan, this article identifies the policy based on the three aspects above, i.e. how the level of public policy at the system, process, and policy level can encourage the transformation of political culture that moves from a viscous patriarchal system toward a gender inclusive system. Furthermore, this article also analyses how hyper-aged population pressures, economic downturns, and international image factors can encourage the Japanese government to eliminate gender-biased policies which make women's roles segregated in social, political, and economic aspects for decades. Consequently, in the 21st century, the traditional role of "good wife and wise mother" or "*ryosai kenbo*" is slowly blurring and now Japanese women are managing to gain equal access in the labour force following the revision of the Equal Employment Opportunity Law in June 2006. If identified based on the indicators of goals, goods, outputs and outcomes, an analytical framework can be formulated as follows.



This article used a descriptive qualitative method. According to Lexy. J. Moleong, qualitative research is a form of research method that uses descriptive data implemented through written and unwritten words obtained through observed and researched social phenomena. As support for this work, the data gathered in this study were obtained through a literature study of journals and books relevant to the topic of innovative public policy “Womenomics” in conjunction with the Japan Revitalization Strategy to mitigate hyper-aged population and economic stagnation impact.

RESULT AND DISCUSSION

A. Mitigating Economic Stagnation with Gender Inclusivity as a Growth Strategy in Japan

Crucial problems in the post-war period overshadowed Japan. The Sakura Country was initially at its golden peak and known as the market leader from 1960 until the 1980s. It is now experiencing the phenomenon of a "loss-decade," which is when a hyper-aged population characterises a depopulation. The increasing elderly population and decreasing birth rates which the growth of productive age has not accompanied, are the two things causing this phenomenon. Japan was at its peak population in 2010, with 128.06 million citizens. However, Japan's population is projected to decline to 86.74 million by 2060, decreasing by about 41.32 million or 33.3% over 50 years (2010-2060).

Declining birth rates also support this hyper-aged population condition due to the low desire of young people to build a family and have children and the high suicide rate. The table below also shows that the projected birth rate continues to decline and will only reach 480,000, inversely proportional to the projected mortality rate of up to 1.54 million by 2060. This declining birth rate is due to social factors such as household pressures, patriarchy, career or job demands, and rising living costs.

Table 1. Japan's Population Age Structure (1960-2060)

	1960	1985	2010	2035	2060
A. Population in millions (index, 2010=100)	93.42 (73.0)	121.05 (94.5)	128.06 (100)	112.12 (87.6)	86.74 (67.7)
B. Children, 0–14	28.07 (166.7)	26.03 (154.6)	16.84 (100)	11.29 (67.0)	7.91 (47.0)
C. Working, 15–64	60.00 (73.4)	82.51 (101.0)	81.73 (100)	63.43 (77.6)	44.18 (54.1)
D. Elderly, 65 and over	5.35 (18.1)	12.47 (42.3)	29.48 (100)	37.41 (126.9)	34.64 (117.5)
(75 and over)	1.63 (11.5)	4.71 (33.2)	14.19 (100)	22.78 (160.5)	23.36 (164.6)
Proportion of elderly in pop. (D/A)	5.7%	10.3%	23%	33.4%	39.9%
Old-age dependency ratio (D/C)	8.9% (1 supported by 11)	15.1% (1 supported by 7)	36.1% (1 supported by 2.8)	59.0% (1 supported by 1.7)	78.4% (1 supported by 1.3)
Births in millions	1.61 (149.9)	1.43 (133.6)	1.07 (100)	0.71 (66.5)	0.48 (45.0)
Deaths in millions	0.71 (59.0)	0.75 (62.8)	1.20 (100)	1.66 (138.3)	1.54 (128.3)

Note. Adapted from *Population Census of Japan* (Statistics Bureau Ministry of Internal Affairs and Communications, n.d.); *Population Projections for Japan* (National Institute of Population and Social Security Research, 2012); *Defusing Japan's Demographic Time Bomb* (Nippon.com, 2012).

Japan, long known as a leader in the semiconductor, technology, automotive, and electronic products industries, is now facing acute social problems due to the need for more productive human resources. The population of productive age as a support for the country's foreign exchange (15-64 years) in the decade of 1960-19 80s has now essentially entered the elderly age. Instead, the state must spend more to support social security once they retire, starting from the pension fund, health insurance, and other living expenses. In the 1960s, Japan's old-age dependency ratio was only 8.9%, of which 11 productive people could support one older person. This figure then dropped to 36.1% in the 2010s, and only 2.8 productive residents can support one older person. The proportion of the non-productive age population (65 years and over) is projected to reach 33.4% in 2030 and 39.9% in 2060. This hyper-aged population condition has influenced Japan's growth stagnation over the last two decades. Even at its worst, Japan will not only lose its population but will also undergo massive changes in the structure of its society in the following decades.

Changes in the structure of society caused by the hyper-aged population pose a serious threat to Japan, which matters in conjunction with the social security system, which relies heavily on the economic output and the allocation of resources from the productive age population to support those who are not working. This burden is tangible; even in the composition of fiscal budget expenditures, Japan tends to pay more attention to the social security sector. In 2021, Japan budgeted up to 35.8 trillion Yen (33.6%) for social security and 23.7 trillion Yen for sovereign debt alone (22.3%) (Statistics Bureau, 2021: pp.36-37).

Even so, the budget for education and research is only 5.3 trillion Yen (5.1%), even though education and research are essential to boosting the development of the technology, industrial sector, and labor force quality. Not stopping there, the multiplier effect of demographic changing conditions also impacted the decline in economic growth during the recession and economic crisis in the 1990s until the Covid-19 pandemic in 2020. As a result, Japan's debt to GDP, which in 1991 only reached 38.9%, massively jumped to 216.3% in 2020 (World Bank, n.d.).

It is undeniable that human resources are a fundamental aspect of a nation-state. This could be seen from the changes in demographic conditions that have become a catalyst for the decline in economic growth and harm to Japan's social and political security sectors. From a political aspect, if the depopulation trend continues to increase in the future, this has the potential to reduce Japan's "national power" in the international eyes because the population is one of the country's power aspects in addition to economic power.

From the economic side, the three fundamental aspects of economic growth are the accumulation of capital, resources, and technology (Nippon.com, 2012). In terms of capital accumulation, a more significant proportion of expenditures compared to state revenues exacerbated by the high debt ratio and sluggish investment/assets also impact the inaction of Japan's economic recovery. Also, this happened due to the continued reduction of the working-age population in Japan, which has an impact on decreasing the level of capital deposits or savings. Japan will also find it challenging to attract investors because the target market needs to be more impressive as a consequence of the dwindling human resources that can produce and buy new products, technologies, and facilities. Even worse, this could lead to deindustrialization and diminishing access to employment in Japan. Therefore nowadays, many companies tend to move their manufactures to developed and underdeveloped countries compared to operating in developed countries because of worker's wages and cheaper resources factors. On the other hand, the declining population in Japan will have a long-term effect on reducing the labour force participation rate in the country.

In addition, the socioeconomic impact of depopulation itself is a complex and multi-layered problem. Of course, more than one fiscal or monetary policy is needed to solve this problem. There are at least two crucial things to work towards mitigating the negative economic impacts of the hyper-aged population in Japan today, thus are: 1) increasing the number of the labour force; and 2) increasing productivity by expanding access to inclusive education, facilities, and resources.

The main concern in pursuing the first goal is what efforts must be conducted to encourage women and older people in Japan to enter the labour force. Japan has a long history of gender inequality that causes discrimination against women in social, economic, and political aspects. In the private and public spheres, marginalisation of Japanese women happens often, so they need the opportunity and the space to maximise their potential, whether in education, career, or household. Women's contribution is undoubtedly precious for the development and future of a nation-state.

When we look back to history, patriarchal conditions became increasingly entrenched when the momentum of the "economic miracle" was marked by the rapid economic development in Japan in the 1960-1970s. This momentum has implications for social transformation, namely the conception of "husband as breadwinner" and "wife as housekeeper" as a collective understanding of Japanese society. In addition, Japan also has a bad reputation in the international eyes related to the fulfilment of women's rights, mainly when women were used as political tools during the occupation and war period and the "comfort women" became a vicious fact (Arifin, 2021: pp.2-4). Thus, to improve Japan's image in the international eye and address the hyper-aged population problem,

transformative policies promoting gender equity in Japan are needed. Besides, a collective understanding is also needed. Indeed, women's empowerment is indispensable to awakening Japan from prolonged economic stagnation.

After escaping from a firmly rooted patriarchal system, "Abenomics" became one of the growth strategies initiated in 2013 by Shinzo Abe, the former Prime Minister of Japan. *Abenomics* is an economic policy with a "three arrows or prongs of economic revival" strategy to liberate Japan from postwar economic stagnation. One of the programs contained in the "Japan Revitalization Strategy" is then known as "Womenomics," which was made to encourage and promote women in the labour force, one of the great potentials of Japan that have not been maximised before. This policy is implemented by providing equal opportunities for women in job recruitment and filling strategic or high positions in companies or institutions. The policy is part of the "Growth Strategy in Three Action Plan" to strengthen the Japan Revitalization Strategy. This policy also provides incentives for women when they have children to support childcare and household roles. This is also expected to increase the birth rate in Japan to break the hyper-aged population chain.

B. Womenomics: New Hope for Japan's Social-economic Reform

Many social phenomena are increasingly developing in times that are increasingly experiencing global changes. One of the problems that are often encountered is the issue of gender equality which is still being discussed today—reflecting on the transition from the 20th to the 21st century, many transformations in technology, education, the economy, and workers' issues. All forms of development that occur are, of course, caused by various social phenomena. Especially in Japan because developed countries have experienced many changes in their social and cultural life. As in Japanese work culture in the industrial and other sectors. Japan's success as an industrialising country that resulted in the country's economy being developed also has a long history that occurred before. This long history has not spared Japan's socio-cultural problems in the economic sector, especially labour issues. Gender disparities can be seen in Japanese work culture, where male workers dominate more than female workers, and women participate in other public activities.

The Second World War impacted Japan, especially the Japanese economic sector, which ultimately led to Japan's demographic problems, in which there was an increase and decrease in birth rates in Japan. The aftermath of the war also impacted the lifestyle of Japanese people with a hard-working ethic. The impact has also triggered workers, not only men but women in Japan, to be more aggressive in looking for work so that they do not have time to take care of other interests, such as getting married and having children. Those women with a mindset that equalises their position with males create effects that trigger workers, as evidenced by the rise of women in Japan's labour sector. In fact, in its development from time to time, especially in the modern era, women in Japan are very active in pursuing education up to the university to target various sectors of well-known companies in Japan. Helping women in the world of work cannot be separated from the role of women's emancipation and the influence of feminist ideas.

The Japanese government is famous for elevating women's status, namely Shinzo Abe. Developments that occurred in the 20th century caused the movement of workers in Japan to experience developments in the military field and expansion, resulting in rapid industrialization. The developments in industrialization resulted in a significant increase in the number of workers in Japan, especially women. In 1999, one of the Japanese figures named Matsui coined the term Womenomics. The term means uplifting and increasing the number of female workers in Japan. The emergence of the term Womenomics provided development during former Japanese prime minister Shinzo Abe's reign in helping Japan

improve its economy. In 2000 it was recorded that 40.7% of the total workers in Japan were women aged 15 to 65 years. The status of workers in Japan also varies, 56.9% are married women, and 33.1% are single (Saleha, 1976).

The Womenomics Policy in Japan centred on the economy and women to tackle existing difficulties, ranging from worker equality for women to Japan's demographic problems. In the 21st century, women started to occupy positions in tertiary industries, restaurants, finance, and insurance. According to the Bureau of Statistics, Management and Coordination Agency, Labor Force Survey in 2000, eight out of ten women in Japan were housewives who took part-time jobs. The effect of an increasing number of female employees in Japan has resulted in a fall in the number of birth rates in Japan. A decrease in the birth rate due to the Bankonka phenomenon, essentially delaying marriage. This effect developed into a condition that led to a demographic crisis.

Besides, there has been an increase in the education sector which is dominated by women and opens up more job opportunities as a result. This increase is reflected in the number of women's educational interests equal to men's due to the phenomenon that occurred in 2015. Former Japanese Prime Minister Shinzo Abe published the form of a policy constructed in 1999 and then enacted in 2015, namely "Abenomics". He proposed action in several three focus areas, namely: 1) monetary policy; 2) fiscal policy; and 3) structural reform policy (Sari & Henriette, 2020).

Research by Kathy Matsui discussing Womenomics and eventually being adopted by the Japanese government also has a connection with the Act on Promotion of Women's Participation and Advancement in the Workplace policy in 2016. The term is an economic strategy called Abenomics, which discusses three focus areas related to Monetary Policy, Fiscal Policy, and Structural Reform Policy. The strategic focus of structural reform policy includes the "Womenomics Policy". Three key performance indicators are: 1) an increase in women's representation in leadership roles by 30% in 2020; 2) an increasing proportion of women working in the 25–44 age range from 68% in 2012 to 73% by 2020; and 3) an increasing proportion of women returning to work—from 38% in 2010 to 55% by 2020. These goals were set for successfully implementing the Womenomics Policy.

The existence of Womenomics policies cannot be separated from input by Japanese society to tackle the gender inequality that occurs for so long. In its case, Japan prefers the role of men in the employment sector, both industrial and other jobs. This resulted in the community, especially women, also taking actions that gave aspiration to the Japanese government system. At first, the Womenomics policy sparked from the Act on Promotion of Women's Participation and Advancement in the Workplace policy in 2016 with an economic strategy called Abenomics as a pillar of Shinzo Abe.

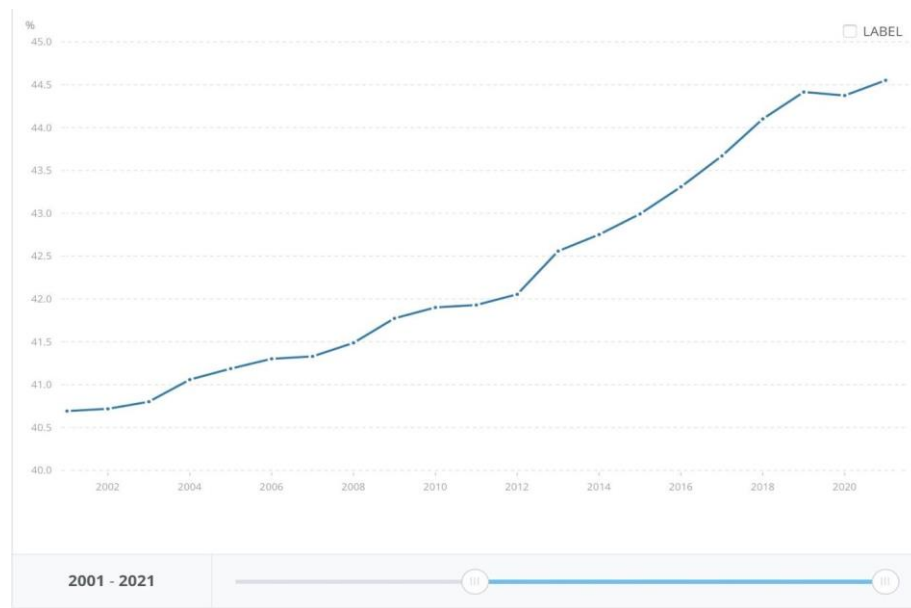
In 2020 it can be seen that the number of female permanent workers in Japan has increased, but not by a significant amount. According to the Japanese Prime Minister's website published in 2014, there are three arrows in the Abenomics policy, namely the first to restore opinions (country and opinion levels), the second to develop creative ideas so that they continue to develop and the last to encourage new industries for the regional realm. In the discussion of the three abenomic policy arrows, it is more directed towards revitalising the Japanese economy. In the discussion of the second point, there is discussion regarding gender equality to obtain the results of increasing the participation and welfare of Japanese women. The Abenomic policy, which in turn is often known as the Womenomics policy which was published and implemented from 2013. In providing support to women, the Japanese government works closely with the Ministry of Economy, Trade and Industry; the Ministry of Health, Labor and Social Affairs and the Gender Gap Bureau. The involvement of various bureaus that are invited to work together has a function in promoting women in

various types of employment as well as overcoming cases of gender inequality and proposing policies.

In pursuing the success of Womenomics policies, there are two efforts to increase women's participation and welfare. The first target is to provide access to women who already have married status and have children to obtain a conducive work environment. There are also new steps that will be implemented in the form of setting up after-school daycare, increasing the number of teaching staff for school children and providing additional services for child care services. The second target is to provide access for women to gain advancement in careers at work. This second point also has the implementation of new steps that will be implemented in the form of promoting positions in the leadership sector and reforming the tax system and social security for both husband and wife.

As a result of the Womenomics Policy implementation, there has been an increase in women worker's rate in Japan. This number has grown stable, especially from 2001 to 2021. Based on the following World Bank statistical data below, it can be seen that the percentage of female workers in 2001-2002 was already 40.7% and then it jumped to 44,6% in 2021. From this statistical data, female workers in Japan have consistently increased from year to year.

Figure 1. Data Statistic Labour Force Females in Japan



Source: World Bank (n.d.)

Even though the absorption of female workers in Japan tends to increase, the efforts made by former Japanese Prime Minister Shinzo Abe indeed continue to experience challenges in the culture of workers in Japan, especially for women. Although a policy has been issued with the ideas conveyed, more women and men workers still need to be. This policy results in inequalities in it that are visible in the economic sector and employment. According to the OECD (Organization for Economic Co-Operation and Development) report, this inequality has resulted in a wage gap for women and men with a percentage of 24.5% as of 2018.

The employment system influences women's employment position in Japan's world of work. Many women work in non-regular employment systems with low wages, there are deadlines, they have much more specific job obligations, and there are very few women workers who occupy managerial positions (Annisa Yuliana Sari & Henriette, 2020). The Human Resource Management labour market, involving gender differences, also affects the wage gap for women (Hara, 2016).

CONCLUSION

Based on the description in the discussion above, the Womenomics policy is an essential pillar in Japan. Aside from that, it also works as a growth strategy that is ideal to be applied at the public policy level to mitigate the impact of the hyper-aged population and economic stagnation in Japan. From the three goals highlighted in the gender-based innovative policy solution in the framework, the progress is already underway, but it needs to be re-evaluated, including:

1. Boosting labour force rate by promoting gender inclusivity and bringing women and older people to the workforce;
2. boosting fertility rates by providing incentives program for the adult population to marry and have children;
3. boosting productivity and capabilities by providing equal access to facilities, healthcare systems, education, and employment opportunities for all

First, in terms of system goods, the Japanese government, pioneered by former Prime Minister Shinzo Abe, transformed a notoriously conservative political and governmental system into a more gender-inclusive system by releasing the "Japanese Revitalization Strategy" in 2013. This is also driven by adopting international norms that demand equality for all, especially human rights and gender equality issues, to improve Japan's image internationally. At the same time, encourage women to enter the labour force to mitigate the scarcity of productive age caused by the hyper-aged population. This can be seen from the increasing participation rate of Japanese women in the labour force from year to year, and this became a new hope for Japan to get out of economic stagnation.

Second, from the process goods level, there is a long process and history that comes from women's movements and glass-ceiling phenomena in Japan that demand equality and rights of Japanese women in social, economic, political, and educational aspects. So far, Japanese women have been confined by stigma and patriarchal conditions that limit their potential. Hence, Womenomics and other gender-based policies represent the process of public policy inputs and outputs between the government and society that articulates its interests.

Third, from the policy goods sphere, Womenomics policy theoretically pays attention to welfare, security, fairness, and liberty. However, in terms of implementation, many problems must be resolved, including the wage gap issue, social stigma, the double burden of being a homemaker, and other demands attached to Japanese women. Furthermore, supporting policies are needed to ensure that women have an equal access to facilities, health, education and training, and equal career path opportunities.

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Ex-government auditor alleges massive irregularities and fraud in SGR funding



July 13, 2023

A former government auditor has alleged massive irregularities and fraud in the financing of Kenya's Standard Gauge Railway (SGR) – including a possible overpayment of Ksh 777 billion.

The claims were made in [a petition submitted](#) to Kenya's Senate by Bernard Muchere, a fraud risk management consultant with extensive experience in the public sector. The petition is based on a detailed analysis of government expenditures drawn from available public records. Its most explosive allegation is that Kenya spent a total of Ksh 1.184 trillion to develop the SGR, far more than the roughly Ksh 407 billion previously claimed by the government.



"I can conclusively state that China Roads and Bridges and the suppliers of facilities and rolling stocks were overpaid by Ksh 777,018,125,192," Muchere writes in the petition.

The petition also alleges that China's loans to the Kenyan government were never actually deposited in Kenya. Instead, based on the documentation available, Muchere believes that the SGR was constructed entirely with existing government revenue.

"This is evidenced by the GOK SGR grants of approximately Ksh 645 billion recorded in KRC's financial statements for 2014/2015 to 2019/2020 financial years," the petition states.

The petition also points out a range of other issues with SGR financing, including:

- That National Treasury records show that roughly Ksh 64 billion was spent between 2021-23 on the supposed construction of the Nairobi-Naivasha SGR line, despite the line being completed in December 2019.
- That the 2023-24 budget includes an expenditure of Ksh 37 billion for "development" of the Nairobi-Mombasa SGR line,

despite that section being completed in 2017. Similar estimates exist for 2024-25 and 2025-26.

- That there are serious inconsistencies relating to the SGR loan amounts when comparing the records of the National Treasury, the State Department of Transport and Kenya Railways Corporation.
- That the money due to China “should not be considered public debt” because the commercial loan contract taken to finance the SGR does not meet the definition of a public contract.

The petition closes with a list of nine demands, including that the Senate begin an inquiry into the financial irregularities and attempt to recover overpaid funds.



Okoa Mombasa has reviewed the petition and finds its allegations disturbing and credible, given the available evidence. We therefore support the petition’s call for a full-scale inquiry into Kenya’s financing of the SGR and the resulting debt.

We further believe that the inquiry should be public, transparent, and include the release of all contracts, agreements studies and other relevant documents related to the financing and construction of the SGR. Okoa Mombasa [obtained a court order](#) requiring the government to release these records in May 2022, but the government has so far [failed to comply](#).

The petition could be formally considered as early as next week, when the Senate returns from recess.

[A copy of the petition is available here.](#)

Update (Feb. 19, 2024): Eight months after submitting his petition to Parliament, Bernard Muchere has yet to receive a response or any sort of rebuttal to his allegations. As a result, he sent a letter to the